

LIFE STORIES FOR YOUNG PEOPLE

MAXIMILIAN IN MEXICO



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IN MEXICO ***



EMPEROR MAXIMILIAN

LIFE STORIES FOR YOUNG PEOPLE

Maximilian in Mexico

*Translated from the German of
J. Kemper*

BY
GEORGE P. UPTON

Translator of "Memories," "Immensee," etc.

WITH THREE ILLUSTRATIONS



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1911

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Translator's Preface

The life story of Maximilian First in Mexico is one of the saddest of tragedies. Admitting that he was in some respects a weak sovereign and incompetent for the task he undertook, the tragedy is none the less sad. The dreadful fate which overtook the Empress Carlotta only adds to the gloom of the situation, and, if all reports are true, serves to emphasize Mexican cruelty and treachery, for in official circles it is generally believed she was made insane by a poisonous herb secretly mixed with her drink. Maximilian himself was a gentleman in the best sense of the term, gentle, courteous, refined, and scholarly; unfitted for the position he held, inexperienced in political matters, and ignorant how to contend with guile and treachery of the basest kind. He was virtually forced to ascend the Mexican throne, and consented only when he was assured that the Mexican people had enthusiastically elected him. Once there, he found himself the victim of treacherous plots and deadly hatred. He had but few friends upon whom he could rely, and they were unable to aid him in the hour of greatest danger. Louis Napoleon, who was chiefly instrumental in sending him there, violated his agreements, withdrew the French troops from Mexico, and abandoned him as a prey to his vindictive enemies, at whose hands he died like a gentleman and a hero, leaving the Empress to suffer the tortures of living death in a European asylum. History recalls few sadder tragedies than the one contained in the story of Maximilian's three years in Mexico.

G. P. U.

CHICAGO, May, 1911

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Maximilian in Mexico

Chapter I

Archduke Ferdinand Maximilian

Ferdinand Maximilian, born at Schönbrunn on the sixth of July, 1832, was the second son of Archduke Charles of Austria and the Archduchess Sophie of Bavaria, a clever and highly cultivated princess, under whose personal supervision the young Archduke received a careful and thorough education, in which Count Bombelles, whose son afterward accompanied Maximilian to Mexico, also had an important share.

From early childhood the prince showed that marked love of nature, and especially of the sea, which was so characteristic of his later years and which made his education for the navy—his destined career—an easy and pleasant task. To this chosen profession, indeed, he applied himself with such zeal and devotion that he may be regarded as the real founder of the Austrian navy.

His leisure hours were devoted to the study of the fine arts and to the practice of all sorts of athletic pursuits, in which he excelled, being tall and well built, and quick and elastic in all his motions.

In 1850, upon the completion of his scientific studies, he made his first long cruise, to Greece and Smyrna, followed by voyages to Spain, Portugal, and Algiers. In 1853 he was made captain of a corvette, and a year later received the appointment of commander-in-chief of the navy, soon after

which, escorted by a squadron of seventeen warships, he visited Greece, Crete, Egypt, and Palestine.

The years 1856-57 were spent chiefly in European travel, during which time the Archduke made the acquaintance of his future wife, the Princess Carlotta, daughter of King Leopold Second of Belgium, to whom he was married in 1857 and who proved so loyal and devoted a companion in joy and sorrow until overtaken by the tragic fate of which we shall hear later. Soon after his marriage, Maximilian, then only in his twenty-fifth year, was made governor-general of the Lombardo-Venetian kingdom by his brother, the Emperor Francis Joseph of Austria—an office which he held for two years, and which served in some measure as a preparation for his subsequent mission in Mexico for, as governor-general, he had many difficulties to contend with, even though they were of quite a different nature from those that afterward confronted him in America.

The war that broke out in 1859 between Italy and Austria put an end to Maximilian's political career and he retired to the seclusion of Miramar, the beautiful palace erected at Trieste some years before. Here he lived quietly and peacefully, occupied with his favorite literary and artistic pursuits, and it was here that he wrote the "Sketches of Travel," afterward published; also the "Aphorisms," which speak the thoughts and aspirations of a great soul.

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Maximilian has been called weak and irresolute, and in fact he did prove hopelessly unequal to the task that was set for him in Mexico—a task far less suited to his gentle, kindly nature than to the bolder character of his rival, Juarez, a man of quite another stamp, who hesitated at no means to attain his ends and for whom the high-minded Hapsburger was no match. That Maximilian made many grave errors cannot be denied, but his entire administration should not be condemned for that reason. It is certain that he was inspired by the noblest

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aims and intentions, and had the Mexicans but realized this and given him their loyal support his plans might have been realized and ensured both the country's welfare and his own.

Chapter II

The Mexican Empire

During the Archduke's travels, in 1856, he had visited Paris and spent twelve days at St. Cloud with Napoleon Third and Eugénie. He became much interested in the Emperor's ambitious schemes, while Napoleon and his wife on their part were so pleased with Maximilian's frank and manly character that by the time he took his departure the French sovereigns had already made plans for the future of their guest, the situation in Mexico offering a favorable opportunity.

The better class of Mexicans were anxious for a strong hand to assume the reins of government and restore order to that distracted and wellnigh ruined land, and as Napoleon Third was then in control of affairs there, it was an easy matter for him to arouse the interest of the Mexicans in the young Archduke as their prospective ruler. The throne of Mexico therefore was duly offered to Maximilian, but he was at first unwilling to accept it. Fully acquainted with the disordered state of that country, there was little temptation for him to exchange the peaceful seclusion of Miramar for so doubtful a gift. Negotiations were carried on for eight months between Paris and Miramar before the Archduke would consent to accept the crown. At length, however, he agreed on condition that both France and England would guarantee their support in this enterprise. Further delays were caused by discussions between France, Spain, and England, but not until England and Spain had finally yielded and withdrawn all their troops from Mexico did Napoleon fully realize the complications of the situation there.

Meanwhile Maximilian at Miramar became devoted to the idea of being Emperor of Mexico, being principally actuated by the fact that his wife would be an Empress. Both applied themselves closely to the study not only of the geography but of the language and customs of the country, actively corresponding at the same time with those who might be able to exert an influence upon the destinies of Mexico.

The first public negotiations were conducted in person by Napoleon Third and the Emperor Francis Joseph of Austria, the latter of whom sent his minister, Count Rechberg, to Miramar to discuss the matter with his brother Maximilian. Both the Archduke and his wife attached great weight to the opinion of her father, King Leopold, who was well known as a shrewd and clear-headed thinker. He pointed out plainly the dangers and difficulties attendant on assuming the sovereignty of Mexico, but did not regard them as insurmountable, and his advice decided the question. Maximilian announced himself ready to accept the throne on certain conditions, the chief of which was that his choice as Emperor should be confirmed by a vote of the Mexican people.

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On the third of October, 1863, an embassy from Mexico arrived at Miramar with a formal offer of the crown. It was headed by Don Gutierrez de Estrada, who had labored for twenty years to restore a monarchy in Mexico. Maximilian's reply was as follows:

"I am deeply moved by the wishes of the Mexican assembly. It is most flattering to our house that their choice should have fallen on a descendant of Charles the Fifth. Yet noble and lofty a mission as it is to establish the welfare and independence of Mexico, I agree with the Emperor Napoleon that the monarchy can be restored on a firm and stable basis only by the free consent of the people. My acceptance must therefore be conditional on that. On the other hand, it shall be my duty to secure the guarantees necessary to protect Mexico

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against the dangers that menace her honor and her liberties. If I succeed in this and the vote of the people be in my favor, then I shall be ready, with the consent of my imperial brother, to accept the crown. Should Providence call me to this high mission, it is my firm intention, after the pacification of the country, to open the way for progress by granting a constitution and to make this fundamental law permanent by an oath. Only in this way can a new and truly national policy be created, by means of which all parties, forgetting their differences, may work with me to lift Mexico to an eminent place among the nations. Bring me this declaration, then, on the part of your fellow-citizens and, if possible, ascertain what form of government they desire.”

This was a frank and manly answer, and no doubt the emissaries of the Mexican people who carried it back across the Atlantic were equally honorable in their intentions. How the vote was really obtained, however, is told us by Montlong:

At Monterey the French general, Jeanningres, summoned the most influential citizens and addressed them thus: “The Emperor of the French, always solicitous for the welfare of this unhappy country, has determined to transform the Mexican republic into a great and prosperous empire, and in the interests of this undertaking has chosen for your Emperor one of the most liberal and enlightened princes in Europe, the Archduke Maximilian of Austria. But as Napoleon wishes him to be elected by general consent of the people I have summoned you here in order to receive your votes.” Then with a threatening glance he added: “You accept, do you not, gentlemen, the prince chosen for you by the Emperor Napoleon?”

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Intimidated by the General’s manner and the ranks of soldiery behind him, all replied in the affirmative, whereupon Jeanningres, addressing the general staff officer who was to record the votes, ordered him: “Write, sir, that this city votes

unanimously for the Empire, and permit these gentlemen to sign it.”

The same method of procedure was enacted in every town. When the principal citizens of Potosi refused to sign a similar document, the officer in command caused them all to be imprisoned for thirty-six hours till hunger forced them to yield. Thus by fraud the Empire was founded, as by treachery it fell, both marked characteristics of this nation as we shall see later.

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The way now seemed clear, but at the last moment an unforeseen difficulty arose. While the Archduke was making a round of farewell visits at various European courts, it was decided at Vienna to demand a renunciation of all rights of succession to the throne of Austria on the part of Maximilian and his possible descendants. Emperor Francis Joseph strongly opposed this, justly maintaining that if such a step were considered necessary, it should not have been deferred till the last moment, but Count Rechberg and Baron Lichtenfels were firm. The former undertook to lay the matter before the Archduke on his return, but was so coldly received that he abandoned any further attempt, while Maximilian himself declared that had this point been presented to him earlier, negotiations with Mexico would have been broken off at once. This, of course, was now out of the question, and after much discussion he finally agreed to sign the act of renunciation, thus removing the last obstacle.

On the tenth of April, 1864, a second embassy, consisting of twenty distinguished Mexicans, again headed by Estrada, arrived at Miramar to perform the coronation ceremony. In his address, spoken in French, Don Gutierrez alluded, first of all, to the gratifying result of the popular vote. As to the method by which it had been secured the good man probably had as little knowledge as Maximilian himself. He then recalled France's service to his native country, whose future prosperity

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he hoped would be assured under the new monarchy. Mexico gratefully acknowledged the Archduke's self-sacrifice in accepting this difficult position and was ready to hail with joy her chosen sovereign, whose motto was, *Justitia regnorum fundamentum*.

Maximilian's reply was in Spanish. He declared that since the two conditions required by him had been fulfilled, he was now able to redeem the promise given six months before and was ready to accept the offered crown. The oath was then administered. Maximilian swore to guard the liberties of the Mexican nation under all circumstances and to do all in his power for the welfare and prosperity of the people, after which Estrada swore allegiance in the name of Mexico and was decorated by his sovereign with the grand cross of the newly revived Guadeloupe order. A triple "Viva" followed to the new Emperor and Empress in whose honor the imperial Mexican flag was hoisted on the tower of Miramar, amidst salvos from batteries and battle ships. A solemn Te Deum in the palace chapel concluded the ceremonies.

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On the same day the Emperor signed the important convention with Napoleon, known as the Treaty of Miramar, whereby it was agreed to reduce the French troops as soon as possible to 25,000, including the foreign legion. This body should evacuate the country as soon as forces could be organized to take their place, yet the foreign legion of 8000 was to remain, if required, for six years after the above withdrawal and be supported from this time by the Mexican government. The transport service for French military supplies must be paid by the same government with 400,000 francs for the round trip, likewise the cost of the French expedition, fixed at 270,000,000 francs for the whole time, till July 1, 1864, with interest at three per cent per annum. After this date the expenses of the Mexican army rested with Mexico, which had also to give 1000 francs for the maintenance of each French soldier, pay included. Against

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these sums the Mexican government had to pay at once 66,000,000 francs in bonds of the late loan and 25,000,000 francs in specie annually. A mixed commission of three Frenchmen and three Mexicans was to meet at Mexico within three months to adjust the claims of French citizens. All Mexican prisoners of war held by the French were to be released as soon as Maximilian entered his States. In addition to this, there were three secret clauses, by utilizing which France afterward, and not without some show of reason, attempted to extricate herself from her dangerous position.

Chapter III

Arrival of the Emperor in Mexico

On the tenth of April, 1864, the die was cast for Archduke Maximilian and Carlotta. On the fourteenth, the day set for departure, all was bustle and confusion at Miramar, usually so peaceful. The harbor of Trieste was filled with vessels, large and small, and, anchored at some distance from shore, lay the *Novara*, the Austrian warship that was to convey the imperial pair to Mexico. Little did any one then suspect that this same vessel was so soon to bring back the body of Maximilian, cruelly murdered by Mexican rebels! To-day all was joyous anticipation. A gayly decorated barge carried the Emperor and Empress out to the *Novara*. Showers of blossoms were flung after them as they left the shore, lined with thousands of spectators, and floated gently out upon the blue waves of the Adriatic. Cannon thundered a farewell. Maximilian looked for the last time upon his native shores.

Two nights later the travellers rounded the southernmost point of Italy, and on the eighteenth reached Civita Vecchia where they landed and were met by the French and Italian ambassadors, envoys from Belgium and Austria, and the Cardinals sent by Pope Pius Ninth to welcome Maximilian. A special train was waiting to convey the entire party to Rome where, on the nineteenth of April, the Emperor had an audience with the Pope. Church affairs in Mexico had been completely demoralized by Juarez, and one of the Emperor's chief tasks was to restore order and provide for the religious needs of his people. The following day Pope Pius Ninth returned the visit at the Palazzo Marescotti, after which the

imperial party returned to Civita Vecchia, where they again boarded the *Novara* and resumed their voyage. At Gibraltar another stop of two days was made, and on the twenty-eighth of May the *Novara* anchored before the city of Vera Cruz. The goal was reached—but what of Maximilian's reception by the people of Mexico who had chosen him as their sovereign by a unanimous vote?

Although the French frigate *Themis*, which escorted the *Novara* across the Atlantic, had hastened on in advance to notify the city of the Emperor's arrival, there was no commotion in the harbor. No flags were flying, no guns roared a welcome, no one was waiting to receive him. A feeling of uneasiness pervaded the Emperor's household, but Maximilian himself made no comment. After a long delay the commander-in-chief of the French fleet, Rear-admiral Bosse, and his adjutant finally made their appearance, though even then, according to the Countess Kollowitz, their greeting was none too warm. Quite different, however, was the Emperor's reception in the towns between Vera Cruz and Mexico; his journey to the capital was like a triumphal progress.

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Thus did Maximilian enter the land that was henceforth to claim his whole attention and best endeavor. For this indifferent and ungrateful people he had undertaken the Herculean task of regenerating a country wasted by forty years of civil warfare; regulating a society demoralized by anarchy; restoring national prosperity; reviving industries; and reconciling to law and order a people to whom outlawry and robbery had become second nature. The army must be reorganized, the land rid of marauders, contending factions appeased and made to work together for the common good. The Church must be placed once more on a settled basis, new channels of trade established, and the whole national standard of civilization raised. These were surely problems to daunt the bravest! Well may Maximilian have hesitated long before accepting such responsibilities, yet with heroic self-sacrifice

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the young Emperor set himself to this stupendous work. That he failed was no doubt due partly to his unfitness for the task, but more to the insuperable obstacles that loomed before and finally crushed the noble Hapsburger.

Chapter IV

Maximilian's First Measures

One of the first necessities that confronted Maximilian in the execution of his mission was the establishment of diplomatic relations with the world. The courts of Vienna, Rome, Paris, and Brussels had been informed at once of his acceptance of the throne of Mexico. It now remained to notify the remaining powers of this event. A decree was issued on the twenty-first of June, 1864, empowering the foreign office to make the necessary arrangements. By the end of the year Mexico had been recognized as an Empire by Russia, Sweden, Turkey, Denmark, Portugal, Spain, Italy, France, and England, also by the German Confederation and the Shah of Persia. Far more valuable to the new monarchy would have been its recognition by the United States, but the White House at Washington still looked upon Juarez as President of Mexico, as did its smaller and less important neighbors on the south, the republics of Guatemala, Honduras, Nicaragua, San Salvador, and Costa Rica. Thus the Empire was surrounded by hostile countries, while its only ally in America, the Emperor Don Pedro Second of Brazil, could be of little use.

Maximilian appointed the advocate Don José Ramirez as minister of foreign affairs—a man concerning whom opinion is divided. There can be no question, however, as to his ability and his loyalty to Maximilian, to whom he proved a valuable counsellor, although the Emperor unfortunately did not always follow his advice. Maximilian took no further action in governmental affairs until he had gained a more intimate knowledge of the country. Though well versed in the language

and history of Mexico as well as its political complications, he discovered at once the necessity of a personal acquaintance with the various portions of his new realm and determined to make a tour of those provinces loyal to him. Meanwhile he devoted himself to learning the needs of his people. With this object in view he spent much time walking about the streets of the capital or visiting various public and charitable institutions. The Empress was her husband's constant companion, sharing all his cares and interests, and although Maximilian did not always agree with her opinions, her clever pen, her quick wit, and cultivated mind often proved of great help to him.

He soon discovered many evils the existence of which he had not suspected. The Mexican is profuse in promises which are never kept, and Maximilian had daily proof of this national characteristic. In spite of his personal charm and kindness the French officers kept jealously aloof from him, regarding themselves as slighted in the distribution of orders. The clergy, disappointed that the Church property confiscated by Juarez had not been immediately restored to them, were dissatisfied with the new government, while the republicans under Juarez refused, of course, to acknowledge the Empire.

The accusation made by these malcontents that Maximilian did not attempt to improve conditions was entirely unjustified, however. Few that followed his career realized how diligently and self-sacrificingly he labored for that end. That the restoration of order must be gradually accomplished was self-evident. Realizing that drastic measures were necessary at many points in the affairs of state, he was forced to take time for observation and investigation before attempting any change. Many evils had to be endured temporarily before any radical changes could be made, and he had also to consult the opinions of his advisers, whether in accordance with his own or not.

His first attention was devoted to the regulation of military and financial matters. A commission, headed by General Bazaine, commander-in-chief of the French troops, was appointed to meet on the fourteenth of July to consider the reorganization of the army. The relations between Maximilian and this officer had been none too friendly from the first. Bazaine considered himself his own master and troubled himself little as to the Emperor's views. In justice to Napoleon Third, however, it must be said that he seems to have been very imperfectly informed as to the actions and practices of his generals in Mexico. All correspondence with France had to pass through the hands of Bazaine or his subordinates, who could easily color reports to suit themselves. On the fifteenth of July a commission, presided over by Velasquez de Leon, and consisting of landed proprietors, merchants, manufacturers, and mine owners, met to discuss the regulation of financial affairs.

From the first Maximilian exerted himself to do away with antiquated customs, and as early as the sixteenth of July a decree was issued requiring all officers of justice to be at their posts from nine to twelve in the morning and shortening their annual leave of absence from three months to six weeks, an innovation that met with small favor from the Mexicans, as may be imagined.

On the tenth of August the Emperor set out upon his tour into the interior, the government during his absence being left in charge of the Empress. He was accompanied by his life-long friend, Count Bombelles, his secretary, Iglesias, Privy Councillor Scherzenlechner, and the Lord Chamberlain Felipe Raygosa. Originally planned for four weeks, the journey extended over three months. A proclamation had been issued by Velasquez de Leon, shortly before the Emperor's departure, announcing his tour and forbidding any state receptions or entertainments in order to spare expense to the people, impoverished by years of civil strife. In spite of this

prohibition, however, magnificent triumphal arches were erected in many places in honor of the Emperor, who was welcomed with great enthusiasm by the populace, the Indians, in particular, gathering in crowds everywhere to gaze at their new sovereign.

On the seventeenth of August Maximilian arrived at Querétaro where he was received with great enthusiasm and remained for several days, being royally entertained. Little did any of those who joined in the festivities suspect that in this very town, only three years later, the Emperor was to lay down his life for Mexico! From there he went on to Celaya which was reached a week later. In many places through which they passed evidences were visible of the effects of the famine that existed in the interior of the country, and where the suffering was greatest Maximilian distributed considerable sums of money from his own purse. At Trapuato the Emperor was suddenly seized with an attack of quinsy which confined him to his bed for two weeks. This delay, together with other unforeseen occurrences in the capital, obliged him to abandon the rest of his journey, and the party returned to Mexico, though by a different route, arriving on the thirtieth of October.

This tour of Maximilian's had proved a continuous ovation, but how much of the popular enthusiasm was due to his personality rather than to allegiance to him as a sovereign is a question. He had shown himself everywhere most gracious and kindly, granting audiences to persons of all classes with a fearlessness which, considering the state of the country, must have commanded the respect even of his enemies. Whether he allowed himself to be deceived by these demonstrations is uncertain. At all events he returned well content with the results of his journey and full of hope for the future. That many of the great changes planned by him for the benefit of the people were never put into execution was not altogether

his fault. To carry out any thorough system of reform large sums of money are needed, and the treasury was exhausted.

Maximilian's first act after his return was to form a ministry. During his travels he had met many able and patriotic Mexicans who, he fancied, would be of great assistance to him in his projected reforms, and from these he chose his ministers exclusively, though doubtless well aware that in some cases the positions would have been better filled by Austrians, Belgians, or Frenchmen. When reminded of this by his friends, however, he would say, "Have patience! When the country learns that Mexican ministers are good-for-nothing, I may be justified in appointing others, and my people can then have nothing to reproach me with." This was no doubt wise on the Emperor's part. The appointment of foreigners would have excited suspicion if not rebellion at once among the excitable and distrustful Mexicans.

On his tour Maximilian had discovered that the country's most pressing need was the revival of commerce. New channels of trade must be created, and for this purpose the laying out of highways and the building of bridges was ordered. Robles, minister of public works, was commissioned to build a railroad between Querétaro and Guanajuato, an undertaking which was never carried out, however. A railroad from Mexico to Vera Cruz was also planned, the execution of which was entrusted to an English company, and three different companies received permission to run steamship lines between the more important seaports of the country. To exterminate the robber bands and secure safety for the life and property of the people, a much needed system of militia was instituted on the seventh of November, 1864. At the same time the Emperor urged most strictly upon all magistrates of the various provinces the following injunctions: preservation of law and order, firm administration of justice, supervision of the press, construction and maintenance of roads, extermination of marauders and outlaws, sanitation,

improvements in agriculture and the breeding of cattle, conservation of forests, etc.

All this proves the loftiness of Maximilian's aims—nor were his hands idle as some of his enemies maliciously maintained. Could he but have had the necessary support and coöperation, conditions in that unfortunate country must soon have improved. But with only the fickle and treacherous Mexicans to depend upon, all these reforms were of brief duration—a mere ripple on the stream.

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Chapter V

Church Affairs in Mexico

The most difficult problem now awaiting solution was the religious situation in Mexico. Forty years of internal strife and anarchy had inevitably lowered the standards of the people and weakened their sense of right and wrong, as was proved by Juarez's treatment of Church property. The claim of the enemies of the Catholic Church, however, that the priesthood was responsible for this moral degradation, is entirely without foundation. All reports agree that the priests were then, as now, the friends and guardians of the Indians. Many of the staunchest supporters of Mexican independence—among them Hidalgo, Morelos, and Guerrero—belonged to the clerical party, and even at the present day a large part of the minor clergy are Indians.

Accounts vary as to the value of the Church's property in Mexico at that time, but it is a matter of little importance, since it had been seized and disposed of by Juarez and his followers long before Maximilian's arrival. Indeed, this had been one of the chief causes for the latter's hesitation in accepting the throne.

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The only possible method of dealing with this knotty question seemed to be that of direct negotiation with the papal chair, and a special envoy was sent to Mexico by Pope Pius Ninth for this purpose. The nuncio, Monsignore Meglia, was received by Maximilian with every mark of honor and escorted in state to the capital where a round of festivities ensued, after which the Emperor and his guest devoted

themselves to the matter in hand. Nine points were submitted by Maximilian and his ministers for debate, the chief of which may be briefly stated as follows: Free observance of all religions in Mexico, in so far as they did not violate the laws of the country; all expenses of Catholic worship to be borne by the State; no taxes nor gratuities of any kind to be paid to the clergy by the people; cession by the Church of all possessions declared to be national property; enjoyment by the Emperor of all rights possessed by his predecessors, the Kings of Spain, in Mexico; a mutual agreement to exist between the Pope and the Emperor to resist aggression on the part of any or all religious orders in Mexico; existing communities to remain on condition that no more novices be received until conditions were settled.

The delicate nature of these matters may readily be perceived as well as the difficulty of their settlement. Negotiations, in fact, were soon broken off and an uncomfortable open rupture occurred between the Emperor's ministers and Monsignore Meglia, who left the capital with his suite on the twenty-seventh of May, and returned to Rome without having accomplished his mission.

Chapter VI

Enemies Within and Without

Maximilian's failure to settle this question, so important to Mexico, not only was of the greatest detriment to the restoration of peace and order, but also lost him the sympathies of the clerical party, already averse to the new sovereignty.

The unsettled condition of the country has been already alluded to. It is impossible for peaceful industries to flourish where the lives and property of citizens are in constant danger. The path of outlawry and anarchy is marked only by mouldering corpses and smoking ruins. Some idea of the state of things may be obtained from a report sent by the prefect of Zamora to his chief, Antonio Moral, on the ninth of March, 1865:

"This prefecture has learned through spies and other sources of information that the robber chiefs Regules, Salazar, Egiulus, and others are assembling their bands in large numbers for attack. Should the troops stationed at Mazamitla and Uruapan be withdrawn, the bandits will capture this town without a doubt, an event which would be followed by the most serious consequences. I must add that all towns in the south of this department are in the same danger, and earnestly implore aid. Pazcuaro is menaced by more than 1400 outlaws. Unless General Neigre, who has been informed of the danger, speedily sends assistance, it will fall into their hands and a terrible catastrophe be precipitated."

On the tenth of May, 1865, the Mexican commander-in-chief, Vicente Rosas, writes to the minister of war:

“Matters are bad and grow worse daily. Besides the bands of Regules and Pueblita, several others are roving about in this vicinity, plundering and burning *haciendas*. Unless something can be done to remedy affairs, this whole department will be lost.”

The country's most serious enemy, however, was its ex-President, Benito Juarez. Born about 1807, in the State of Oaxaca, of an Indian family, claiming descent from Zapotekos, Juarez's childhood was spent in extreme poverty. With a natural thirst for knowledge, he eagerly availed himself of all the opportunities for learning that came within his reach, and, finally succeeding in obtaining some education, he determined to devote himself to the study of law. A wealthy Indian merchant, named Don José Hernandez, had taken him into his service as errand-boy from which position he soon rose to a clerkship, and afterward was admitted to the bar with the dignity of Doctor of Laws. Later he was elected to the Vice-Presidency under Comonfort, upon whose resignation, in 1858, Juarez became President of Mexico.

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When Maximilian assumed the throne, Juarez's term of office had nearly expired (November 30, 1864). He would have been wise therefore to recognize the Empire, under which he might have looked to hold some important position. Maximilian, indeed, did make overtures to the ex-President by offering him a place in the cabinet, but Juarez coldly declined, preferring to remain at the head of the revolutionists, who kept Mexico in a state of turmoil and effectually prevented any peaceful development of that distracted country.

The position taken by the United States toward the new Empire has already been alluded to. On the fourth of April, 1864, Congress adopted a resolution declaring the

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unwillingness of the United States tacitly to appear before the world as an indifferent spectator of the deplorable events then taking place in Mexico, and its refusal to recognize a monarchical government founded on the ruins of an American republic and under the protection of a European power.

Much to his regret, therefore, Maximilian was forced to abandon all thought of an embassy at Washington. Realizing fully how great an advantage recognition by the United States would have been to the Empire, both he and his ministers had used every effort to establish friendly relations between the two governments. The White House, however, still continued to recognize Juarez and his ambassador, Romero, a crafty official who succeeded, not only in establishing recruiting offices for his master in some of the large cities of the United States, but in winning over many of the newspapers also to his side.

Chapter VII

Bazaine's Position in Mexico

The attitude taken by the French in Mexico has already been alluded to. Bazaine in particular seems from the first to have been little affected by the Emperor's good example. He was well aware of France's incalculable services to Mexico, and that it was French bayonets chiefly which still maintained some show of order in the country. As for Maximilian, while thoroughly appreciating Bazaine's ability, he could not but regard him as the man of whose will he was more or less at the mercy, and felt most keenly the arbitrary acts of the Marshal and his underlings, of which the following examples will serve as illustrations.

In 1864 the French general, Briancourt, had a Mexican colonel arrested and forced him to sweep the streets for two hours every day. Indignant at this outrage, some ladies of the town brought wreaths of flowers to the colonel as he swept, whereupon Briancourt had bills posted proclaiming that in the future any one who committed this offence should share the prisoner's sentence. After being humiliated in this way for ten days, the imperial officer was summoned before Briancourt, who dismissed him with the words: "Go where you choose now—over to the republicans—for all I care!" And the colonel actually did join the Emperor's enemies, with several other officers.

A French officer, meeting one of his comrades who had served through a campaign under Lieutenant-colonel Ornano, congratulated him on having been one of those receiving

decorations for bravery. “You do me an injustice!” replied the other. “We invariably turned our backs upon the enemy and if Ornano singled me out in his report, it was only through fear lest I might betray how it was falsified. Let me tell you just one incident of this honorable campaign. As we were approaching the village of San Francisco, Ornano sent a party of cavalry in advance to reconnoitre. A fifteen-year-old boy, attracted by the sound of riders, came to the door of his house to see who they were, and, as he galloped by, the leader of the patrol split the poor child’s skull with one stroke of his sabre, just as his mother was about to draw him back into the house. Truly a heroic deed!”

These examples will suffice to prove with what contempt the French regarded the Mexicans and how the officers especially lost no opportunity of turning the Emperor’s subjects against him, even while they themselves were still supposed to be in Maximilian’s service. It would be unjust, however, to accuse the whole army of this treacherous behavior, nor can Napoleon Third be held responsible for it. He was a warm personal friend of Maximilian in the first place, and it seems reasonable to assume that he was ignorant of such conduct on the part of Bazaine or he would have recalled him and sent some one else in his place.

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On the third of October, 1865, a report having been generally circulated that Juarez had fled from Mexico and taken refuge in Texas, the Emperor issued a decree for which he has been severely criticised. It ran in substance as follows: All persons belonging to armed bands or companies, political or otherwise, not lawfully authorized, under whatever appellation or for whatever purpose, shall be tried by court-martial, and if found guilty shall be condemned to death and executed within twenty-four hours from the date of sentence.

Bazaine is believed by some to have been the real author of this edict, which was aimed at the destruction of the robber

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bands that infested the country, but by authority of which Maximilian himself was afterward sentenced to death by Juarez. As, however, it was signed by all Maximilian's liberal ministers it seems more probable that they were responsible for a decree so little in accordance with his kindly nature.

Whether or no Bazaine had any share in the framing of this edict, he certainly did all in his power to further its execution, as appears from a confidential message to his generals sent with a copy of the decree. He concludes, "You are hereby commanded to notify the troops under your orders that no more prisoners are to be taken. All individuals found under arms, irrespective of person, are to be shot on sight. In future there will be no more exchange of prisoners; on both sides, it is kill or be killed."

By these cruel means he hoped to prejudice the people against their sovereign, thereby furthering his own ambitious schemes for becoming President of Mexico himself, schemes which were destined never to be realized, however.

Chapter VIII

Fruits of the New Government

We have seen from the preceding chapters what the state of affairs in Mexico was when Maximilian assumed the government. By the beginning of the second year of the Empire matters had already materially changed. Most of the country folk had returned to their farms, and city merchants who dealt in agricultural implements soon saw their stock disappear, and were forced to order fresh supplies. This led to a steady commercial intercourse with the United States which greatly increased after the close of the Civil War. In the Spring of 1865 the duties to Mexico from New York alone amounted to 1,700,000 pesos in a single week. Trade with the West Indies, South America, and Europe was also extensive. Merchants who at first had been obliged to purchase on credit, owing to the prevailing lack of funds, were by this time able to pay cash for goods. This was certainly one good result of the new government, as must have been recognized by all public-minded Mexicans.

With the prospect of profit and an assured market, trades and crafts also revived. Hundreds of youths, who had been torn from their peaceful occupations and forced to join the revolutionist bands, returned to their apprenticeships. Channels of trade were improved. A regular line of mail steamships was established in the Gulf of Mexico, and intercourse was resumed with all Pacific ports. Fine steamers made monthly trips from San Francisco to La Paz, Guaymas, and Mazatlan, and twice a month from Guaymas to Acapulco. Construction was begun on the railroad between Vera Cruz

and the capital, though it was afterward suspended. A telegraph line was built from Mexico to San Luis Potosi. The national finances were also much improved. Customs receipts steadily increased and the mints coined more dollars than ever before, though still bearing the stamp of the Republic.

These were some of the happy results of the new administration. That they were of but brief duration was not the fault of the government nor yet of the Emperor, but of Juarez who, still passing as President, succeeded only too well in his schemes for undermining the Empire.

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With increasing prosperity came a revival of various sports and amusements, of which the Mexican people are naturally so fond. Early in the year 1865 most of the European ambassadors arrived with their suites, and a series of splendid entertainments followed at the imperial court. Later the marriage of Marshal Bazaine to the seventeen-year-old niece of General Lopez furnished occasion for more festivities. These diversions, however, did not cause the Emperor to slacken his labors for the improvement of the country. On the third of March, 1865, he had the Empire divided into fifty departments and revived the so-called "Indian Council," which had existed in the days of Spanish sovereignty, placing at its head the advocate, Faustin Chimalpopoca, a pure Aztec. The Indians still formed the larger part of the population of Mexico in spite of the efforts of the Republic to enslave and crush them. Realizing the importance of this class of people, Maximilian took the greatest interest in their protection and welfare, while they in turn remained loyal to him to the last.

On the tenth of April, 1865, the anniversary of his acceptance of the crown, Maximilian published an imperial statute declaring that, as a number of provinces still remained hostile to the Empire, he did not deem it wise as yet to introduce popular representation, but promised to do so as soon as the national disturbances were settled. Besides the Guadeloupe

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order, revived in 1863, and the order of the Mexican Eagle, founded in January, 1865, a special order for women, that of San Carlos, was instituted, April tenth, by the joint sovereigns. Another important task was the reorganization of the army. Most of the Mexican officers at that time were quite useless and must be got rid of. To replace these and furnish a supply of efficient native officers, Maximilian opened the military school at Chapultepec.

Chapter IX

Louis Napoleon's Attitude

When Maximilian ascended the throne of Mexico, the Civil War was still raging in the United States, and the White House had no time to care for the affairs of its southern neighbor. Although from the first the United States had refused to recognize the Empire, its attitude had been neutral rather than actually hostile, and Napoleon was counting on an indefinite continuation of the war for the furtherance of his plans. The end came sooner than was expected, however. After a bitter struggle the Southern States yielded to the North, and this materially changed the situation in Mexico. Juarez was now not only regarded as President, but furnished with active support, without which he would doubtless have been forced to give up the struggle. He hovered on the border, now on one side of the line, now on the other, escaping into Texas when the enemy was close at his heels, and remaining there in safety until the danger was passed, then crossing back into Mexico again, where, reinforced by volunteers from the north, he won frequent victories over the imperial troops and constantly gained ground.

Napoleon's position was likewise changed. In a speech delivered from the throne on the twenty-second of January, 1866, he declared:

“In Mexico the government founded by the people continues to thrive. The rebels, overpowered and dispersed, have no longer any leaders. The national troops have proved their valor and the country has furnished security for order and

safety in the development of resources which have made its commerce worth millions with France alone. Our enterprise therefore is progressing most successfully, as I last year expressed the hope that it would. As to the recall of our troops I have come to an understanding with Emperor Maximilian, whereby their withdrawal may be accomplished without danger to the interests of France, for the protection of which in that distant country we have pledged ourselves. Any objections raised by the United States to the continued presence of our troops in Mexico will be removed, I feel sure, by the justice of our explanations. The American people will perceive that an enterprise in which we sought their aid cannot be contrary to their interests. Two nations, equally jealous of their rights, must naturally resent any step that might jeopardize their honor or their dignity.”

Plausible and reassuring as this sounds, it nevertheless betrays two facts: France’s fear of being drawn into war with the United States if she continued to maintain an army on American soil, and Napoleon’s desire to conciliate that country even at the cost of violating the Treaty of Miramar. True, there may have been something in the secret articles added to this document which justified Napoleon’s methods, while on the other hand it is evident that Maximilian was far from opposing the recall of Bazaine, nor did he object to the gradual withdrawal of the French troops, as may be seen from the following announcement that appeared in the *Monitor*:

“In pursuance to an agreement between M. Dano, the French ambassador, His Excellency Marshal Bazaine, and the Mexican government, the Emperor has ordered that the French troops shall leave Mexico in three detachments: the first to go in November, 1866, the second in March, 1867, the third in the following November. Negotiations between the two governments have also begun to substitute those articles of the Treaty of Miramar relating to finance, new stipulations

whereby France's indebtedness and the interest of the loan guaranteed by her to Mexico shall be assured."

The United States declared itself satisfied with these assurances and continued to assist Juarez in his attempts to undermine the government.

The year 1866, which thus began so peacefully on paper at a time when there was little peace in the air, either in Europe or America, was to prove an eventful one for Maximilian, and hastened with giant strides the downfall of the Mexican Empire.

Chapter X

The Empress' Journey to Europe

On the seventh of July, 1866, the following unexpected announcement appeared in one of the Mexican journals: "Her Majesty, the Empress, leaves to-morrow for Europe, where she is to arrange the settlement of various matters of Mexican as well as international import. No greater proof of patriotism and self-denial could be furnished on the part of our sovereign than the assumption of this mission, the more so as the Empress sails from Vera Cruz, where yellow fever is so prevalent at this season. We publish this in order that the people may know the real purpose of Her Majesty's journey."

The Empress Carlotta's sudden departure aroused great excitement. It was generally felt, and not without reason, that such a step must have been due to weighty causes, the issue of which it was at that time impossible to foresee. For Maximilian it marked a turning-point in his career. It was as if with the departure of his guardian angel, Fortune too had forsaken him and abandoned him to his fate.



EMPRESS CARLOTTA

Unexpectedly and most uncomfortably for Napoleon, Carlotta arrived at St. Nazaire on the eighth of August by the packet-boat, *Empress Eugénie*. She was met by the Mexican ambassador, Almonte, and his wife, who travelled with her to Paris without delay. Metternich, the Austrian ambassador, was

awaiting her at the Grand Hotel, and on the eleventh of August she had a long interview with Napoleon at St. Cloud. Accounts vary as to what actually transpired on this memorable occasion, but according to Hellwald, who seems a reliable authority, three points were discussed. The first related to the postponement of the withdrawal of the first detachment of French troops from November, 1866, to April, 1867, by which time Maximilian hoped to have his own army so strengthened that he could better spare the French. Juarez had been making such headway in the north that the Emperor did not dare as yet to dispense with his allies. Next the Empress desired that Bazaine should be immediately recalled and General Donay sent out in his place, a request not difficult to understand considering the many differences that had occurred between Maximilian and the Marshal. The third point concerned Mexico's ever empty exchequer. By the Treaty of Miramar Mexico had agreed to repay her financial obligations to France; but, as we have seen, she was by no means able to pay her debts or even the interest on them.

In her first interview the Empress accomplished nothing. Napoleon was unwilling to defer the withdrawal of his troops for some months, for fear of giving offence to the government at Washington. As to the second point no agreement was arrived at, for Bazaine was not recalled. When he did leave Mexico at last, he not only took the entire army with him, but also induced the volunteers from Austria and Belgium to resign. As to a settlement of the Mexican debt, however, a separate treaty was concluded.

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On the twenty-second of August Empress Eugénie and Emperor Napoleon made a final visit to Empress Carlotta, who left Paris on the following day for Brussels. From there she went to Italy, and on the twenty-ninth arrived once more at Miramar where she had spent so many happy days. Another task now awaited her. As the negotiations between Maximilian's ministry and the papal nuncio concerning the

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religious situation in Mexico had been unsuccessful, Carlotta determined to try and settle the affair herself. On the twenty-fifth of September, therefore, she arrived again in Rome with her suite and two days later had a long audience with the Pope. Soon after this she was suddenly taken ill. At first her attack was said to be only the result of the fatigues of her long journey and the change of climate, an explanation which seemed sufficiently plausible. The real nature of the illness could not be long concealed, however. The Empress' mind had become totally deranged, and her malady was later pronounced incurable. Shocked as all Europe was by this dreadful news, what must have been its effect upon Maximilian! How he received it, is told as follows by his own physician, Dr. Basch:

“The Emperor at this time was living entirely secluded in the palace, only Herzfeld, the Minister of State, Father Fischer, the court chaplain, and myself being present at his table. There were no invited guests till the eighteenth of August, for the afternoon of which a large dinner was planned. That morning the Emperor held a council of state, at the close of which I entered the imperial cabinet. While I was present, two cable despatches arrived from Europe, at sight of which His Majesty was visibly alarmed. His forebodings were well founded. The first was sent by Castello from Rome on the fifth of October, and read:

“‘Her Majesty, the Empress, has succumbed to the fatigues and difficulties of her mission, and must be taken to Miramar without delay, accompanied by her physicians.’

“The other, dated the twelfth, was from Count Bombelles at Miramar, and contained the further information that all hope was not yet abandoned. Her Majesty, with her entire suite, was at Miramar, and a member of the household would follow at once with advices. Herzfeld opened the despatches and, unwilling to break their contents too suddenly to the Emperor,

pretended that he was unable to decipher them exactly, but reassured His Majesty by asserting that the news apparently referred to the illness of some one at Miramar, probably one of the Empress' ladies-in-waiting, Madame Bario, who was a Mexican.

“The facts could not long be concealed, however, for the Emperor, suspecting that something was being withheld from him, insisted upon knowing the truth.

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“‘I feel that something terrible has happened,’ he declared. ‘Tell me what it is, for I am consumed with anxiety.’

“While Herzfeld was seemingly studying the despatches more closely, I retired to my apartment, but was soon summoned again by His Majesty. As I entered, he turned to me, tears streaming down his cheeks, and asked,

“‘Do you know who Dr. Riedel is in Vienna?’

“At the mention of this name, the truth flashed upon me. Herzfeld had disclosed the news, and much as I longed to spare the Emperor, I could not lie to him.

“‘He is the director of the Insane Asylum,’ I was reluctantly forced to reply.”

These melancholy tidings only served to hasten the impending crisis. Already disheartened by repeated trials and disappointments, Maximilian now saw his last hope vanish, and felt himself deserted by Providence. Indifferent to all that passed, his only thought seemed to be of hastening to his beloved wife and leaving behind him this ill-fated country to which she had been so cruelly sacrificed.

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Chapter XI

Events in Mexico after the Departure of the Empress

Two persons have already been mentioned who played an important part in the events of this history, Herzfeld, the Minister of State, and Father Fischer. Herzfeld was a German and devoted to the Emperor. Unfortunately Maximilian sent him back to Europe soon after this, thereby depriving himself of a valuable friend and adviser in his days of misfortune. Father Fischer was born in Würtemberg, of Protestant parents, and seems to have had rather an adventurous career. He came to America with a band of emigrants who settled in Texas, and went from there to California as a gold miner. Becoming a convert to Catholicism, he entered the Jesuit order, from which he was subsequently dismissed, for good and sufficient reasons, no doubt. The description of this man given by the Emperor's physician is far from flattering, but it is manifestly unjust to lay his faults at the door of the much-abused order of Jesuits. A whole society cannot be held responsible for the deeds or misdeeds of a single member, still less when that member has ceased to be one. At all events Father Fischer belonged to the Emperor's closest circle of friends, another member of which was Professor Bilimek, whose acquaintance we shall make in the next chapter. This man was a scholar, absorbed in the study of the flowers and butterflies of Mexico and troubling himself little with political affairs.

After the departure of the Empress matters went rapidly from bad to worse. In the north the followers of Juarez had inflicted a series of defeats on the imperial troops and were steadily gaining ground, while in the capital the outlook was far from

encouraging. Maximilian had replaced two of his Mexican ministers with Frenchmen, Generals Osmont and Friant, but their attempts to remedy the situation were frustrated by the pride and jealousy of the Mexicans who bitterly resented the appointment of foreigners to these high positions. The United States, moreover, took exceptions to these appointments as a violation of French neutrality and made a formal complaint to Napoleon, whereupon the following announcement appeared in the *Monitor*:

“On the twenty-sixth of July His Majesty, the Emperor of Mexico, issued a decree entrusting the portfolio of war to General Osmont, Chief of Staff of the Expedition Corps, and that of finance to Friant, intendant-general of the army. As, however, the military duties of these gentlemen, both holding important posts in an army still in the field, are irreconcilable with the responsibilities of their new positions, they have received no authorization to accept these appointments.”

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This plainly shows France's fear of the United States and her indifference to her engagements with Maximilian. A new ministry, therefore, had to be formed, in the selection of which Father Fischer's influence is said to have been largely responsible.

As the prospects for a restoration of the Republic grew brighter, Juarez did not remain the only candidate for the presidential chair, a certain Ortega and the former ex-President Santa Anna also appearing as aspirants to the honor. The position of the imperial forces on the border soon became so unsafe that Maximilian was forced to abandon those districts to the revolutionists and withdraw his troops more into the interior. Even his attempt to keep the way to the coast open was not successful, for the city of Xalapa, on the road to Vera Cruz, was besieged and captured by the rebels, thus cutting off communication between the capital and the coast, while many of the native soldiers deserted and went over to

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the enemy with their leaders. Even among the revolutionists, however, there were dissensions, the greater part of them supporting Juarez, others Ortega or Santa Anna. On one point only were they united, the downfall of the Empire and restoration of the Republic.

Another incident occurred at this time which was well calculated to make Maximilian, already suffering from an intermittent fever, caused by the climate, still more averse to remaining in Mexico. This was a conspiracy against his life, discovered by one of the town prefects. The plot, hatched by some of Santa Anna's guerilla followers, was to include the murder of the prefect himself by his secretary, a man from the lower classes whom he had befriended, to be followed by that of several other prominent personages. A closer investigation revealed that the Emperor's life also had been aimed at.

Such were the people by whom Maximilian was surrounded, and such the treachery which he had constantly to deal with in his adopted country.

On the afternoon of the day on which the two fatal despatches arrived in Mexico Maximilian was taking his usual stroll on the flat roof of the palace with his physician, when he suddenly announced his intention of abandoning the country where he had met with such ingratitude, and asked his friend's advice as to the matter.

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"I do not see how it will be possible for Your Majesty to remain here," replied the doctor frankly.

"Will it be attributed to the Empress' illness if I should leave?" he then inquired.

"That certainly is reason enough," returned the other. "Besides, Europe must recognize that Your Majesty is no longer bound to remain in Mexico after France's violation of her contracts."

“What do you suppose Herzfeld and Fischer will think of it?” continued Maximilian, after a pause.

“I am sure that Herzfeld will share my views,” declared the physician. “As to Father Fischer, to tell the truth, I have not much confidence in his opinions.”

They then discussed the advisability of leaving at once or whether it would be better to wait for a time, but as there seemed no good reason at present for a sudden departure, Dr. Basch advised deferring it for a week in order that suitable preparations might be made.

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That evening Maximilian summoned his Minister of State and Professor Bilimek, director of the museum, and laid the matter before them. To both, the Emperor’s safety was of far more concern than the fate of a half-civilized country whose indifference had caused the downfall of all his hopes and schemes. The recent plot against the Emperor’s life also may well have been an argument in favor of the plan. At all events they heartily coincided with it and Herzfeld urged preparations for departure with such energy that in three days’ time it was possible to leave Chapultepec, a summer palace near the city of Mexico, which Maximilian had had newly restored and fitted up at great cost and where he was staying at this time.

The rumor of the Emperor’s proposed departure caused general consternation. The new ministry was stunned and tried every means to dissuade him from this step. But Maximilian remained deaf to all arguments and, lest his resolution should be weakened, Dr. Basch had orders to permit no one to enter the royal apartments. All who came were dismissed with the information that His Majesty was ill and could receive no visitors. Even the Princess Iturbide, aunt of little Prince Iturbide, a descendant of August the First, the first Emperor of Mexico, whom Maximilian, having no children of his own, had named as Crown Prince, was unable

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to gain access to him. The physician admits he had rather a violent scene with the high-spirited Princess. She would take no denial and ended by roundly abusing those friends of the Emperor's who had persuaded him to leave Mexico.

As a last resort the ministry threatened to resign in a body if the plan were persisted in, but even this was of no avail. Maximilian quietly declared that if these gentlemen resigned their offices he would leave the country at once, and he would certainly have kept his word. It is greatly to be regretted, therefore, that they did not do so and thus spare Mexico the everlasting stain of treachery and murder. Finding it the only means of at least deferring the Emperor's abdication, however, they remained at their posts and sent a message to him agreeing to carry on the business of government during his absence in accordance with his wishes.

Maximilian had already received a letter from Bazaine approving the plan of changing his residence to Orizaba, which was only a day's journey from the seaport of Vera Cruz, and promising to maintain law and order in the capital. The Emperor's abdication would suit his own plans very well, by bringing him a step nearer to the realization of his secret ambitions.

Thanks to Herzfeld's energy and activity, all was ready at the appointed time, and at four o'clock on the morning of the twenty-first of October, the Emperor, escorted by a troop of three hundred hussars under the command of Colonel Kodolitsch, set out from Chapultepec, little thinking ever to see that place again. Councillor Herzfeld remained in the capital to arrange some business matters, expecting to join the Emperor later on.

The journey to Orizaba must not be passed over in silence, as it was marked by the occurrence of an important event. On the afternoon of the first day, the imperial party reached the Hacienda Socyapan, where they were to spend the night. The

Emperor seemed abstracted, and walked up and down before the *hacienda* in silence with his physician and Professor Bilimek. At length he broke out suddenly:

“I cannot have any more bloodshed in this unhappy country on my account. What am I to do?”

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The professor advised him to abdicate and sail for Europe at once, but Dr. Basch opposed this, representing that an unnecessarily sudden departure would only precipitate matters and bring about exactly what the Emperor wished to avoid, namely, more bloodshed in Mexico. At the same time he urged a revocation of the decree of the third of October, 1865, a suggestion which Maximilian cordially approved, and in regard to which he expressed himself in strong terms on this occasion.

Father Fischer and Colonel Kodolitsch, who were also in the Emperor's confidence, added their influence to the doctor's, urging that a *hacienda* was not a suitable place from which to abdicate a throne, as Maximilian himself was forced to acknowledge. He contented himself, therefore, with issuing two orders. Father Fischer was to write personal letters at once to Bazaine and to Minister Lares, ordering the repeal of the law of the third of October and the cessation of all hostilities until further notice. These two important despatches were entrusted to Count Lamotte, an officer in the Austrian Hussars, to carry back to the city of Mexico, and on the following morning the Emperor left the *hacienda* apparently much relieved. At noon of the second day, while resting at Rio-Frio, he sent the following telegram to Captain Pierron:

“You, with Messieurs Pino, Trenchot, and Mangino, are hereby appointed a commission which, under your direction and with the assistance of some trustworthy official from the ministry of finance, will examine the Civil List accounts, mine as well as that of the Empress, to prove whether we owe the State or the State us. I desire from the commission a

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detailed and authenticated statement in regard to this, in which shall be included the sum taken by the Empress for her voyage to Europe, and that received by my secretary on the Civil List account, together with those employed by Minister Arroyo after the reduction of the Civil List, in works on the palace and at Chapultepec.”

Herzfeld was also commissioned to issue, in the name of the Emperor, the necessary written orders to the prefect and treasurer at Miramar.

“The Emperor wishes the utmost publicity to be given these matters,” so Herzfeld was notified, “and holds you responsible therefor on your honor and your friendship. Amid the political shipwreck he desires to keep his name and honor untarnished and would rather suffer personal loss than touch any part of the property of the Mexican nation.”

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At the stations of Actzingo and Canada, Maximilian spent the night in the house of the priests, a fact which furnished his enemies an opportunity for accusing him of too close affiliation with the clergy. His arrival was everywhere hailed with rejoicings, and he was overwhelmed with expressions of sympathy for the illness of the Empress. On the twenty-seventh of October the imperial party reached the city of Orizaba, which they entered at five o'clock in the afternoon, greeted with booming of cannon and the enthusiastic acclamations of the populace.

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Chapter XII

The Emperor at Orizaba

Herzfeld's knowledge of the real state of affairs and anxiety for his master's safety soon caused him to lay aside all other considerations and follow the Emperor to Orizaba, where he urged preparations for departure with all possible despatch. In the midst of those, however, he was ordered to Europe by Maximilian to prepare for his arrival there. Thus this loyal friend was spared being a witness of the Emperor's tragic fate.

During his stay in Orizaba Maximilian led a simple, secluded life in his palace, seeing only his intimate associates, but occupied with arrangements for departure, and the settling of his private affairs. Much to his satisfaction, his Civil List showed a balance in his favor of \$180,000. All his servants but two were paid and dismissed. Colonel Kodolitsch was sent to Mexico to arrange with Bazaine concerning the Austrian and Belgian volunteers, who had followed Maximilian to Mexico and for whose future he felt it his duty to provide. One question much discussed confidentially, and which Maximilian seemed quite unable to decide, was as to whether the abdication should take place before his departure or in Europe, where he had accepted the crown. His plans for the future were already made. It was not his intention to return at once to Austria, but to travel for two years, meeting the Empress at Corfu, if her condition should permit. Meanwhile his own health had greatly improved. With his two countrymen, Dr. Basch and Professor Bilimek, he made frequent excursions about the neighborhood, enjoying the wonderful scenery or searching for rare specimens of plants

and insects. Suddenly, however, events occurred which changed the aspect of affairs and effectually put an end to the Emperor's plans of travel.

Two old comrades-in-arms in the Mexican army, Generals Marquez and Miramon, returned from Europe and, seeking an immediate audience with the Emperor, urged him to return to the capital, holding out promises of support and encouraging prospects for the imperial cause. While Maximilian was hesitating, a letter arrived from Bazaine, which turned the scale. In this the Marshal was so imprudent as to tell tales out of school, betraying the fact that Napoleon III had made other plans for Mexico without consulting Maximilian, who, as he had not yet abdicated, was still sovereign of the country. This arbitrary conduct on the part of his ally roused Maximilian to action. Indignant at the slight cast upon him and anxious to prove that he was not slinking away at the bidding of France like a disgraced servant, he was in a proper frame of mind to respond to the appeal made by his conservative advisers, that it was his duty to remain and not desert his party in the hour of danger. Although outwardly preparations for departure continued as before, the Emperor's resolution was weakened, and toward the end of November he summoned his council to Orizaba to consult with them as to the advisability of his abdication, giving in an address to that body his reasons for such a step, viz., the spread of the revolution with its attendant evils, the hostility of the United States toward Mexico, and the withdrawal of the support of France.

A vote was taken, twenty-three members of the council being present, of whom two were for immediate abdication, ten of the opposite opinion, while eleven were in favor of abdication, but held that the present was not the time for such a step. Maximilian yielded to the majority and agreed to remain on condition that funds should be raised for the proper defence of the government and the organization of a permanent national army, and that measures should be taken

toward the settlement of questions pending with France and the United States. The Mexicans, proverbially lavish with promises, readily agreed to all these points, and on the first of December the Emperor issued a manifesto to the people, declaring that he had yielded to the desire of his council on condition that a congress representing all parties should be summoned to decide the existence of the Empire, and, if this were confirmed, he would devote himself to the promotion of its welfare.

On the twelfth of December, 1866, Maximilian left Orizaba to return to Mexico, accompanied by most of the members of the council who, in the unsettled condition of the country, were glad to avail themselves of the imperial escort, consisting as before of Colonel Kodolitsch's hussars. They consumed much time on the journey, lingering for nearly three weeks at Puebla, Maximilian residing at first in the Xonaca palace, a short distance outside the city. Here he held an interview with Castelnan, the French consul, which appears to have been of a most unpleasant nature and widened still further the breach between the two Emperors. Scientific expeditions were also attempted by the three friends, as at Orizaba, but, finding few specimens in the region about Puebla, these excursions were soon abandoned and Maximilian moved his residence into the city.

Arriving in Mexico on the fifth of January, 1867, Maximilian remained for a time at the Hacienda de Teja, a quarter of an hour's distance from the capital. While there three of his former ministers, Ramirez, Escudero, and Robles y Pezuela, made a final attempt to induce him to abdicate and leave the country at once. But although evidently impressed by their arguments he refused to follow their advice. The accusations of vacillation and irresolution afterward made against Maximilian would seem to be justified by his behavior at this time. Doubtful of himself and of the future, he still clung to the hope of being able at least to retire with honor, conscious

of having fulfilled his duty to his adherents. In relating to his physician the interview with his ex-ministers, he declared that Ramirez wept at parting, expressing the earnest wish that his evil forebodings might not be realized. He knew but too well how deceptive were the promises of his countrymen.

“In no case,” continued the Emperor, “will I remain here more than a few months, only until affairs are more settled. Will it injure my health, do you think, to stay on in Mexico? Will the fever return?”

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“I have no anxiety as to Your Majesty’s health on that score,” replied the physician; “it is Your Majesty’s life I fear for.”

Maximilian’s attempts to convoke an assembly of liberal representatives from all parties to discuss measures for remedying the existing disorders in the country met with small success, as might have been expected. It seemed impossible to obtain any sort of peaceful fusion or coöperation, and there was nothing left for the Junta (congress) but to declare war on the rebels in Mexico—war to the knife.

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Chapter XIII

Departure of the French

Meanwhile the French were making active preparations for their return to France. On the sixteenth of January, 1867, a letter arrived from Napoleon Third, revoking the extraordinary powers granted to Bazaine as commander-in-chief of the Expedition Corps and declaring the corps itself disbanded. The embarkation of the first division of troops on the *Empress Eugénie* had then already begun. This was in accordance with the secret articles already mentioned, and met with no objection on the part of Maximilian. The recall of the foreign legion, however, included in the order, was a direct violation of the Treaty of Miramar, which guaranteed their remaining in the country for several years yet, if needed.

In February the French marched out of the capital. Before leaving they burned as many of the army effects as could not profitably be taken with them. A large quantity of powder was poured into the water, and projectiles were rendered useless by being filled with sand, so that the Mexicans should not profit by their possession. It is hard to believe that Bazaine's personal feeling could have gone to such lengths, but there seems no reason to doubt the truth of these statements. During the Russian retreat before the French, in 1812, stores of all kinds were destroyed to prevent their falling into the enemy's hands. Maximilian was not yet an enemy; on the contrary, he was supposed to be an ally, yet for days huge columns of fire and smoke testified to the friendship of the French.

Nor was this all. On the occasion of the Marshal's marriage to his Mexican wife, Maximilian had presented him with a palace, which in case of his recall was to be redeemed by the government for 150,000 piastres (\$100,000). Now that he was about to leave the country forever he demanded the promised sum, though well aware of the state of Mexican finances, and, finding it impossible to obtain the money from an empty exchequer, sold enough French arms and ammunition to the revolutionists at insignificant prices to make up the amount.

When Bazaine, some months before, had begun the reorganization of the Mexican army which was to replace the French, he had ordered that all commanders must be Frenchmen, other officers and privates either French or Mexicans; pay, equipment, etc., to be the same as in the French army, and those of his own troops who chose were to be free to remain in the service of the Emperor. Yet in spite of this, before the departure of the last of the troops in February, 1867, he issued an order declaring that all French soldiers, officers or privates, who did not return to their own banner immediately would be regarded as deserters and forfeit all rights as citizens. Owing to the wide area of country involved and the difficulty of communication it was, of course, impossible for this order to reach all the French soldiers in Mexico—a fact which was taken advantage of later by Juarez, for all the Frenchmen serving under Maximilian, who were unfortunate enough to be taken prisoners, were shot as deserters. Before leaving, however, the Marshal was kind enough to send a message to Maximilian, offering to wait for him in case he should decide to leave the country—an offer which, needless to say, was declined.

With the French troops, thanks to Bazaine's powers of persuasion, went the greater part of the Austrian and Belgian volunteers, who had done distinguished service under the command of Count Thun, only a few of the Austrians remaining with their Prince. The first step now to be taken

was the formation of the new national army, a task already begun by Bazaine. Maximilian divided it, roughly speaking, into three corps, commanded respectively by Generals Miramon, Marquez, and Mejia. As these three men are henceforth to play an important part in Mexican affairs, a word concerning them may not be amiss.

Miramon had already enjoyed the honor of occupying the presidential chair in Mexico, at which time Marquez had served under him. One incident will suffice to illustrate the character of these two heroes. After the capture of Tacubaya, in 1859, they made a visit to the hospital where a corps of seven surgeons were caring for the wounded, friend and foe alike. That very day Miramon issued an order to Marquez, requiring all prisoners ranking from subalterns to staff-officers to be shot under his personal supervision—a list of the same to be delivered to himself that evening. And Leonardo Marquez, this worthy henchman, carried out these instructions so faithfully that not only every prisoner was shot before sunset, but also the surgeons of whom there had been no mention in the order. Such were the ideas of justice that animated these two commanders of the Mexican national army, yet Marquez, in particular, seems to have completely succeeded in concealing his real character from Maximilian, over whom he unfortunately had great influence. In marked contrast to these was the Indian Mejia, who, though still young and of unprepossessing appearance, was brave and honest, a good soldier, and loyal to the end to his imperial master, whose death indeed he shared.

Army corps, properly speaking, were out of the question, of course, in the Mexican army, of which only the few remaining French troops and foreign volunteers were trained soldiers. For the rest and for the greater part it was composed of half-hearted Mexicans, impressed into the service and ready to go over to the enemy at a moment's notice whenever it pleased them. Of the volunteers Colonel Kherenhüller had succeeded

in forming a regiment of hussars, and Baron Hammerstein, one of infantry, while Count Wickenburg had an auxiliary force of constabulary, and Colonel Masso the *cazadores* or *chasseurs*, all of whom did good service. That their blood was shed in vain, that they never had the honor of fighting near the Emperor or defending him with their lives, was not the fault of these brave Germans, but of the traitorous villain Marquez.

Maximilian next divided the country into three great military districts. Mejia was given command in the east, with headquarters at San Luis Potosi, Miramon was stationed in the west at Querétaro, while Marquez, controlling the central district, remained in the capital.

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The Emperor was determined now to show that he could maintain his position without the aid of French bayonets—a proof of confidence and fearlessness which was hailed with acclamations by the imperialists, who already foresaw the downfall of Juarez and the triumph of the Empire. Before actual hostilities began, however, Maximilian made one more effort to avert bloodshed and make peace with his enemies. But it was all in vain. His overtures were coldly rejected and there was nothing for it but to let fate take its course.

The first advance was made by Miramon, who succeeded in inflicting a severe defeat upon the republicans, Juarez and his ministers only escaping by the swiftness of their horses. But the exultation caused by this news soon gave place to deepest dejection. Some days later, Escobedo, commander of the revolutionist army in the north, surprised the imperialists at San Jacinto and put them to rout, while Miramon, with the remnants of his scattered forces, took refuge in Querétaro.

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Chapter XIV

The Siege of Querétaro

On the tenth of February the Emperor told his physician to prepare for a two weeks' expedition to Querétaro. Prompted by the urgent representations of his ministers, Lares and Marquez, that his presence was needed there to counteract the demoralizing effect of Miramon's defeat, he determined to place himself at the head of the army. After some delay, owing to the difficulty of obtaining funds for the campaign, in spite of the ministry's assurances as to the satisfactory condition of the national finances, Maximilian set out upon this fateful journey on the thirteenth of February, with a force of sixteen hundred Mexicans.

The matter had been arranged with so much secrecy that even Prince Salm and Major Hammerstein had no suspicion of the plan, while the Austrian hussars were dumbfounded when they found the Emperor starting for Querétaro without them. Two men have been accused of persuading Maximilian to this rash and fatal step—Father Fischer and the Prussian ambassador, Baron Magnus. Dr. Basch, one of the few who were in the secret, denies this, however, and places the blame entirely on the two ministers, Lares and Marquez—the latter of whom had managed to win the Emperor's entire confidence by his eloquence and flattery. This seems the more probable since it was to their interest to remove Maximilian to a safe distance. Once already he had started for the coast. Why might he not do so again and with the aid of his Austrians succeed in reaching it and bidding adieu to the country forever? This must be prevented at all cost. As for

leaving these loyal troops behind and trusting himself to the uncertain Mexicans, it must be remembered that Maximilian was completely deceived as to the real state of affairs. From his order to Dr. Basch it is evident he expected to return from Querétaro in a short time. He wished also to give his Mexican subjects a proof of his confidence in them, a noble and chivalrous idea, no doubt, but most imprudent.

Marquez, on the other hand, was anxious to keep the Emperor under his own influence and away from that of his German friends, whose advice might seriously interfere with his plans. It was also important to leave the capital in safe hands, and no one realized more than Marquez the difference between the Austrian troops and his ragged Mexican soldiers, many of them wearing a uniform for the first time.

It was doubtless for this reason that the plan was kept so secret. The Emperor's friends would surely have dissuaded him from taking such a step or, at least, have insisted on accompanying him. Indeed, when Kherenhüller and Hammerstein heard that he was about to leave for Querétaro, they tried their best to induce him to take them with him. As a last resort they even appealed to Father Fischer to use his influence in their behalf, but all in vain. Having promised his friend, Marquez, Maximilian felt he could not in honor retract his word.

Shortly before setting out he took leave of his Austrian officers, assuring them that his reasons for taking this journey were purely political ones, and promising that they should soon follow. Prince Salm indeed did follow with a few trusted men, in spite of the Emperor's prohibition, overtaking the imperial party before they reached Querétaro. Of the march thither Maximilian himself gives an interesting account in a letter to Professor Bilimek who had returned to Miramar some time before. In it he writes:

“As you will already have learned through the newspapers, our friends, the French, have at last left Mexico, and, having once more obtained liberty of action, we have exchanged the butterfly net for the sword. Instead of bugs and beetles we now pursue other game. Bullets instead of bees now buzz about our heads. Twice between Mexico and Querétaro we were in action and had a number of our men killed and wounded. One of the latter fell just in front of my horse and was immediately operated on, under fire, by Dr. Basch, the only European who accompanied me. In the second skirmish, where we were shot at like targets, our Hungarian cook (you remember him?), who was riding behind us with our servant Grill, was wounded on the lip. In every town where there were no revolutionists we were welcomed most heartily by the people, whom we found longing for peace and cursing the French.”

Maximilian reached Querétaro on the nineteenth and was received with the enthusiasm to be expected from one of the strongest imperialist cities. The streets were thronged with curious spectators who hailed the Emperor's appearance with shouts of joy, while from windows and balconies, flags and gay hangings of all sorts waved a welcome. The Spanish casino had been selected and prepared as a residence for the Emperor, where he was received by the commandant of the city, General Escobar, after which the whole party attended a solemn Te Deum at the cathedral.

In the evening there were great festivities, concluding with a magnificent banquet, at which there was no lack of those fine speeches wherein the Mexicans especially excel. Maximilian took no part in these celebrations, pleading fatigue as an excuse. Marquez, however, improved the occasion rudely to impress upon General Miramon the sense of their altered positions, he now being commander-in-chief and Miramon his inferior, at the same time openly displaying his satisfaction over the latter's recent defeat. Truly a noble soul! Although

white with rage, Miramon controlled himself, replying briefly with a toast to the army.

For a time after his arrival in Querétaro, Maximilian found the life very pleasant. His simple, kindly ways soon won the hearts of the people, with whom he mingled freely and fearlessly, joining in their amusements and conversing familiarly with all classes. His coolness under fire also roused the admiration of his soldiers, who cheered wildly as he rode calmly past their ranks, the enemy's bullets whistling about his head.

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In the capital, meanwhile, there was so little thought given to the Emperor and his companions in Querétaro, and there was so little idea of keeping any of the promises made to him, it would almost seem that Marquez was not the only traitor. Soon after leaving Mexico, Maximilian had sent back word for the Austrian troops remaining there to follow him at once. Had this order been delivered, the expedition to Querétaro might have had a different and less tragic ending. But, owing to Marquez, it never reached its destination, and the Emperor's loyal friends, Kherenhüller and Hammerstein, were prevented from joining him while there was still time.

The city of Querétaro had at this time a population of some forty thousand inhabitants. It lay in a narrow valley on the southern bank of a small stream, called the Rio Blanco, forming a quadrangle of about eight thousand feet in length by four thousand in breadth. To the west extended a wide plain, called from the mountains behind it the plain of Guadalajara, while running from south to northeast was a range of hills, afterward utilized by the republicans with great effect. Two places which proved of special importance to the imperialists during the siege were the Cerro de la Campaña, a hill lying just west of the city, and the Convent de la Cruz, almost at the opposite end. This was a large stone edifice of great strength, dating from the days of Cortez. The convent

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grounds were enclosed by heavy stone walls, and had at the eastern end a smaller but equally strong building known as the Pantheon or burial-place of the convent.

Two weeks after the Emperor's arrival (March fifth), the republican forces, under General Escobedo, appeared before Querétaro and began to invest the town. The garrison consisted of about four thousand infantry, three thousand cavalry, and had forty-four cannon—a force so insignificant, compared with the vast armies of the present day, that it is remarkable it should have held out as long as it did against such overwhelming superiority of numbers. General Mejia had arrived at Querétaro shortly before this, with his troops from Potosi, among whom were a number of German officers and soldiers, while serving under Miramon were some six hundred Frenchmen. Immediately after the appearance of the enemy, Maximilian held a council of war with his generals. Miramon and Mejia were in favor of attacking the republicans before their forces should have time to unite—an excellent plan which was not carried out owing to the opposition of the all-influential Marquez, who held that the defence of the city should be their first consideration. Thus precious time was allowed to pass, and the imperialists looked calmly on while the enemy gradually crowned the surrounding heights with batteries. The Emperor had first established his headquarters on the Cerro de la Campaña, but when the republicans extended their lines eastward, they were moved to the Convent de la Cruz (so called from a cross erected there in commemoration of the conquest). General Miramon now occupied the former headquarters with a battery of eight guns, while the chief defence of the town was entrusted to the Mexican Castillo, an able general, but no longer young and almost entirely deaf.

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The enemy's next move was to cut off the city's supplies, both of water and provisions, hoping to subdue it by starvation. The only water now obtainable was that of the Rio Blanco,

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while meat soon grew so scarce that many of the cavalry horses had to be sacrificed. Juarez himself joined the republican camp for a time, but, being unable to endure the smell of powder, soon returned to Potosi. On the fourteenth of March the Juarists made their first general attack on the town, assaults being made on three sides at once, under cover of the batteries. The main struggle, however, took place at La Cruz. After a hot fight they succeeded in capturing the Pantheon, but were afterward driven out by a body of Austrians. During the attack Maximilian remained in the great square before the convent, exposed to the hottest fire, yet quite calm and apparently unconscious of the deadly hail of bullets all about him. Once a shell burst only a few paces in front of him, but fortunately no one was injured, though an adjutant had his sword bent and his clothes burned by a flying splinter. Prince Salm, always conspicuous for bravery, made a brilliant sortie and succeeded in capturing the first guns from the enemy.

By evening the Juarists had been repulsed at all points and driven back, but the victory proved barren in results. Lopez, for some reason, took no part in the action, while Marquez either would not or did not know how to follow up the advantage he had gained. As for Miramon, he distinguished himself a few days later. It had been planned to surprise the Juarists early on the morning of the sixteenth, and Miramon was chosen to lead the attack, from which great things were hoped. But the whole scheme fell through because—that general overslept!—a neglect of duty difficult to understand in these days. When he did at last awake it was broad daylight, and all thought of a surprise had to be abandoned.

On the twenty-first of March another council was held and an important decision arrived at. This was to send one of the generals back to the city of Mexico with full authority from the Emperor to act as he thought best. He was to dismiss the present ministry and form a new one, to obtain more funds, and, in any case, to return with aid to Querétaro without delay.

Marquez, for whom the place was getting much too warm by this time, had no difficulty in obtaining the appointment—a simple means of escaping the trap into which he had led his sovereign. Still trusting the traitor implicitly, Maximilian left it entirely to him whether to bring only a part of the troops from Mexico or the whole garrison. It was arranged that Marquez, with one thousand horsemen, was to make his way through the hills to the south, while Miramon, to divert the enemy's attention, made a sortie in the opposite direction. The plan was kept so secret that even Miramon had no suspicion of the real purpose of his expedition. This time he did not oversleep but successfully surprised the enemy at four in the morning, returning with twenty-two carts full of provisions and war material, sixty oxen, and some two hundred sheep and goats. Meanwhile Marquez and his troopers had passed through the enemy's lines unnoticed, leaving the imperialists the poorer by one thousand of their best men—no small loss to a garrison already so reduced.

The Juarists, now swelled by reinforcements to about forty thousand men, continued to harass the city by daily attacks from without, while their spies kept them accurately informed of all that passed within. The Emperor, unconscious of the treachery by which he was surrounded, still looked confidently for relief from Marquez. Days passed in ever-increasing suspense, while the situation of the besieged grew more and more critical. Marquez' enemies began openly to hint at treachery, and at length even Maximilian lost faith. Now that it was too late his eyes were opened to the real nature of his "friend," and, realizing that he had been betrayed, he determined to send Prince Salm on another mission to the capital—to arrest Marquez, if necessary, and return at once with reinforcements. An attempt was accordingly made on the twenty-second of April to break through the enemy's lines, but the city was by this time so closely invested that it was found to be useless. Meanwhile the republicans, fearing that the Emperor with his whole force

might succeed in escaping from the city, caused reports of Marquez' approach to be circulated by their spies, while false despatches, purporting to arrive from the capital, were smuggled through the lines in order to soothe the imperialists with vain hopes.

But what of Marquez while all Querétaro watched so anxiously for his return? Where was he and what was he doing? He had arrived safely at the capital on the twenty-seventh of March with few losses, and, finding the city of Puebla hard pressed by the Juarist, Porfirio Diaz, determined to go to its relief. Though well aware of the urgency of the situation in Querétaro, and the need of haste in executing his mission, he seems to have troubled himself little concerning it, and to have taken no steps toward sending the promised aid. The relief of Puebla he did indeed undertake, but here as in Querétaro he made so many blunders that the attempt ended in utter failure and involved the needless sacrifice of many of Maximilian's brave Austrians.

Chapter XV

Downfall of the Mexican Empire

Meanwhile the situation in Querétaro remained about the same from week to week. Thanks to the reports spread by republican spies, relief was still looked for, while frequent skirmishes enlivened the monotony in which both Miramon and Mejia distinguished themselves. Nor were they altogether without results, for on the twenty-seventh of April Miramon routed twelve thousand of the besiegers, captured twenty-one guns, and took a large number of prisoners. Yet neither of these generals seemed able to utilize their advantages. Whenever a victory was won, precious moments were wasted in useless celebrations, in true Mexican fashion, leaving the enemy plenty of time to recover lost ground.

At length, however, the Emperor was forced to abandon all hope of Marquez' return and as a last resort began seriously to consider the possibility of breaking through the enemy's siege lines to the western plain whence they might be able to reach the mountains beyond. Once there they would be safe—for these were the native haunts of General Mejia, who knew every foot of the country and was certain to find support among the sturdy mountaineers—always a loyal race. Thither, too, the Juarists would be slow to follow. Being unwilling to leave the city without any military protection, Maximilian's first step was to issue a call for volunteers, to which hundreds of the townsfolk responded and were enrolled as recruits by Mejia, to whom their organization was entrusted. Meanwhile Prince Salm selected a body-guard of picked men for the Emperor. The attempt was to be made early on the morning of

the fourteenth of May,—the chief command of the expedition being intrusted to Colonel Lopez, a proof of Maximilian's unbounded faith in this scoundrel. As to the sequence of events, Dr. Basch, who was an eye-witness, writes as follows:

“At eleven o'clock on the night of the thirteenth, a council of war was held at which it was decided to defer our departure till the following night. This was at Mejia's request, the number of volunteers being so great he had been unable properly to arm or organize them in so short a time, and it was upon their help he largely depended for the success of the undertaking. Preparations had all been completed. We were ready for the march. Only such effects as could be carried with us on our horses were to be taken. The Emperor himself was very hopeful. ‘I am glad,’ he said to me on the afternoon of the fourteenth, ‘that the end has come at last and feel sure we shall succeed, partly because my good fortune has never yet failed me and also—call it superstition if you will—because to-morrow is my mother's name day—which is a good omen.’

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“The Emperor's luggage was divided among the escort—members of his suite each taking a part of his papers among their effects. The contents of His Majesty's privy purse were distributed between Salm, Lieutenant-colonel Pradillo, the Emperor's secretary, Blasio, Colonel Campos, commander of the body-guard, myself, and Lopez, the latter of whom expressed dissatisfaction on being handed his share because it was in silver and small coin instead of gold like the rest.

“At ten o'clock that night another postponement was made till the fifteenth, this time at the request of General Mendez, for what reason I am unable to say. About eleven the Emperor held a conference with Lopez concerning some details of the plan, and, made wakeful by excitement, did not retire until one. At half-past two he had me wakened. I went at once to his room and found him suffering with an attack of dysentery

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—a disease which had been making havoc in both camps owing to bad food and the effects of the rainy season. I stayed with him nearly an hour till the pain was relieved, then returned to my own room and lay down with my clothes on. The convent was then wrapped in deep stillness; not a sound was to be heard. Just before five I was suddenly aroused by two men bursting into my room, one of whom I recognized as Lieutenant Jablonski. ‘Where is Prince Salm?’ they shouted, ‘he must be awakened!’ and with these words they rushed out again. I sprang up at once. Something unusual must have occurred to bring them to headquarters at that hour. Without stopping to think about it, however, I roused my servant, who was sleeping in the same room, ordered him to saddle my horse as quickly as possible, and hastened in quest of Salm, whom I found already up and dressed. I asked him what was the matter. ‘We are surprised,’ was his answer. ‘Make haste and tell Fürstenwärther to have the hussars mount without delay.’

“I had just delivered this message when the Emperor’s Mexican chamberlain, Severo, came and informed me that His Majesty wished to speak with me. Returning to his room, I found him already dressed. ‘I do not think it is anything serious,’ he declared with the utmost calmness, ‘but the enemy have forced their way into the courtyard. Get your pistol and follow me to the square.’

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“Grill, the steward, afterward told me during our imprisonment that the Emperor did not lose his presence of mind for a moment. While he was dressing he had his sword placed by the door unsheathed, to be at hand in case of need. In obedience to His Majesty’s command I went to my room to buckle on my revolver and there my servant met me with the news that he had been stopped by a strange officer who had taken the saddle blankets from him. Having myself given the order for the hussars to mount, it was necessary for me to have my horse at once if I was to accompany the Emperor, so

I told my servant to follow me and point out the officer who had prevented his obeying my orders. We met him in one of the passageways, wrapped in one of the blankets and carrying the other on his shoulder. As the Emperor had only spoken of the enemy as having entered the courtyard, I naturally supposed, meeting this man inside the convent, that he and the ten soldiers with him were our men and asked if he did not recognize me as the Emperor's physician. He tried to evade me, pointing to a staircase leading to the roof of the convent, and saying, 'Your blankets are up there.'

"Still in the dark as to the meaning of all this, and indignant at the unnecessary delay, I drew my revolver, whereupon the officer cried to the soldiers, '*Desarme lo!*' (Disarm him!) I saw a row of bayonets pointed at me and heard the click of triggers and in a flash the whole thing was clear to me. Any attempt at resistance would have been madness, so, escorted by the officer and his squad, I mounted the steps to the convent roof, which to my amazement I found crowded with republican troops. 'You are my prisoner!' said the officer, now speaking for the first time. 'So I see!' was my angry rejoinder. My revolver was then taken away from me, and Perez, for such was the officer's name, began to search my pockets with a dexterity that proved him no novice in the business. Naturally the well-filled money belt did not escape his deft fingers, nor my watch which I had with me, and this unexpected booty caused him to treat me with more favor. In spite of the danger of the situation, I could not refrain from drawing out my surgical case, which had been overlooked, and, offering it to Perez, inquiring whether he would not like that also. This voluntary gift, however, he did not accept nor did he take my note-book. There being no bank notes in Mexico, paper naturally did not interest him as much as coin or valuables, and my papers were left undisturbed in my pocket. I was then taken to the tower where the Emperor had so often exposed himself to the enemy's fire, and placed under the guard of two men."

So much for the physician's experiences on that eventful night. Meanwhile, after telling Dr. Basch to get his pistol and follow him, Maximilian, accompanied by Prince Salm, General Castillo, Lieutenant-colonel Pradillo, and Secretary Blasio, went out into the courtyard. At the gates they found one of the enemy's guards stationed, and standing near by were Colonel Lopez and Colonel José Rincon Gallardo. The latter, to whom the Emperor was well known, said to the guard: "Let them pass, they are civilians," and Maximilian and his companions walked out unmolested. From La Cruz they made their way to Miramon's headquarters on the Cerro de la Campaña, several other officers joining them on the way. The lines everywhere were already in the possession of the enemy and even the small body of cavalry they found assembled at the foot of the hill soon melted away, going over to the enemy little by little as their fears overcame them. Turning to Mejia, the Emperor asked if there was no possibility of breaking through with a few faithful followers, but Mejia sadly replied in the negative, saying any such attempt would be useless. Resigning himself to his fate, therefore, Maximilian ordered the white flag hoisted and a few moments later surrendered his sword to a republican officer who galloped up. The Emperor was a prisoner.

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That afternoon at four o'clock Escobedo sent the following telegram to the Juarist minister of war in Potosi:

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"At three o'clock this morning our troops captured the convent La Cruz. The garrison were taken prisoners, part of the enemy's troops having retreated to Cerro de la Campaña in great disorder and under fire from our artillery. About eight this morning Maximilian with his generals Mejia and Castillo surrendered at discretion. I beg to offer the President my congratulations on this great triumph of the national arms.

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MARIANO ESCOBEDO."

A mighty triumph, indeed, for fifty thousand men to conquer a garrison of five thousand, exhausted by famine and disease, and that only by an act of treachery!

As to the manner and conditions of Lopez' betrayal, accounts vary. He is said to have been promised as much as ten thousand piastres by Escobedo. His accomplice in the plot was a certain Anton Jablonski, but the whole affair was managed with such adroitness that not one of the Emperor's friends had a suspicion of it. Lopez afterward published an emphatic denial of the accusation, which was supported by Escobedo and in which he had the audacity to appeal to Prince Salm for confirmation. The latter's reply, written during his imprisonment and after Maximilian's death, leaves nothing to be desired in the way of plain speaking. It runs in part as follows:

"To Miguel Lopez, former imperial Mexican colonel and author of the article entitled 'The Capture of Querétaro':

"In this defence, addressed by you to your countrymen, to France, and to the world at large, you appeal to me as witness that Querétaro did not fall by treachery and maintain that your statements bear the stamp of perfect truth. Although I, as you know, have been a prisoner of war for five months, my sense of justice will no longer allow me to be silent, for I can prove their utter falsity. You publicly declare that Querétaro was captured by force of arms; that the Emperor commissioned you on the night of the fourteenth of May to negotiate with the enemy, his troops being completely demoralized and all hope of escape abandoned; and you dare any who maintain that Querétaro fell by treachery to appear and dispute your assertions. I accept your challenge, therefore, and before the world proclaim you a traitor with the blood of your former sovereign and benefactor on your hands. It is not true that the Emperor commissioned you to negotiate with the enemy. I had the honor of conversing with His Majesty that night, after

you had left him, and he had not then or at any other time the faintest idea of treating with the republicans. If his army was small, it was still brave and loyal enough to have fought a way out through the enemy's lines for its beloved sovereign, to whose character, as you well know, such a course as you describe would have been utterly foreign. This being the case, permit me, Senor Lopez, to ask you a few questions before the world.

“Why, if you had been ordered to enter the enemy's lines, did you return about two o'clock with a republican officer of high rank and bring him into La Cruz, the Emperor's headquarters? Why did you, contrary to the Emperor's wishes, and without my knowledge, order the Hungarian hussars to unsaddle, when I had already given them the Emperor's commands to remain saddled all night? Why, at such a dangerous time, did you remove from the Emperor's headquarters the guard upon whom the safety of La Cruz depended? Why were the eight guns which stood on the square in front of the convent turned with their muzzles toward the city? Why, at two o'clock in the morning, did you take this republican general, dressed as a civilian and armed with a revolver, all through our fortifications? Why did you leave our lines before four o'clock that morning, still with this same officer, and return in a quarter of an hour at the head of two of the enemy's battalions and lead them into the inner court of La Cruz, where you were met by your accomplice, Lieutenant Jablonski? How did it happen that you and Jablonski, both supposedly prisoners, should have informed the Emperor of the enemy's presence in La Cruz? How do you explain the fact that when His Majesty, with General Castillo and myself, were about to leave the convent, then already surrounded by the enemy, we were allowed at a word from you to pass as civilians, although the Emperor must have been already recognized and General Castillo and I were in full uniform? How was it that after our capture some of the republican officers named you as the traitor? How did it happen that you,

a prisoner, were always at liberty? And, finally, how were you able to possess yourself of the imperial papers and various articles belonging to His Majesty, such as his silver toilet service, which, by the way, have never appeared again?

“To all of this, Señor Miguel Lopez, you cannot honestly and honorably reply; the facts speak for themselves and proclaim you both traitor and murderer. Why did you betray your Emperor and benefactor? Because, in the first place, you wished to be revenged on him for withholding from you the General’s commission which he had already signed. In case you should not know his reason for this, then learn now that it was because a brave man, whose blood is also on your hands and whose name I will not mention, lest you take revenge on those he has left behind, had presented to His Majesty a private document dismissing you from the army for infamous conduct during Santa Anna’s presidency and forbidding your ever holding a government office again.

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“And, secondly, Señor Lopez, you were moved by fear. Seeing that something decisive must soon occur and fearing, in case of our defeat, for your future and for your life, you hoped by this shameful treachery to clear your past account with the republicans, as indeed you did. Your third attempt at treason failed, for a short time after the Emperor had been made prisoner, finding your hopes disappointed, you sent a person known to us both to him with offers to betray your new confederates. In my presence this person attempted to pave the way for you to approach the Emperor, overtures that were naturally rejected with contempt. A man may choose his own course in life, but he must be true to his principles. You have not only been false to yours but have also committed the most infamous of all crimes—that of treason—and broken the oath you took to the imperial cause. The name of Miguel Lopez may become famous, no doubt, but it will never be mentioned in the annals of Mexico or of the world save with deepest abhorrence and contempt.”

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Chapter XVI

The Emperor's Imprisonment

After Maximilian had surrendered his sword to the republican commander on the Cerro de la Campaña he was taken back to his old quarters at the convent, his physician and two attendants, Grill and Severo, being allowed to join him later.

“It was with a heavy heart,” writes Dr. Basch, “that I approached the Emperor’s door, before which a guard was posted. I opened it and paused a moment on the threshold to compose myself, but His Majesty came up at once and embraced me, weeping. Quickly controlling himself, however, he pressed my hand and turned away, sighing deeply. A mournful silence followed. Now for the first time I perceived that Salm, Blasio, Pachtá, and Pradillo were also in the room. For a time the Emperor paced up and down, lost in thought, but at last he spoke, this time more calmly.

“‘I am glad,’ he said, ‘that it all happened without more bloodshed. That much at least has been accomplished. I feared for you all.’

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“Although he had been so ill the night before, excitement had sustained him during the events that had since occurred. Now, however, the attack returned and he was forced to go to bed suffering greatly. Having, in our present situation, no remedies at hand to relieve his distress, I was greatly surprised when the Emperor produced a small box of pills which I had given him the night before. ‘You see,’ he declared, ‘how important it is not to lose one’s presence of

mind. This morning when we were surprised I remembered to put this in my pocket.’”

Maximilian’s room had been completely rifled during his absence. Personal effects, books, clothing, and documents all had disappeared, having been appropriated by Lopez as souvenirs of his former benefactor. During the forenoon the Emperor was visited by several of the republican officers, among whom was Colonel José Gallardo, who had permitted him to leave La Cruz the preceding night—a mistaken kindness, as it proved, for Maximilian, in consequence, had been arrested in arms and thereby made himself liable to that fatal decree of October third, which he had tried to revoke on his way to Orizaba.

Most of the imperial generals who had remained loyal were confined in a room adjoining the Emperor’s. Mendez remained in hiding, but, his plan of concealment being betrayed a few days later, he was taken out and shot. Miramon had been shot in the face with a revolver by one of his own adjutants while attempting to rally his troops on the Cerro, the morning of the surrender, and was at his own quarters. The prisoners were treated with scant consideration. A rich merchant of the town supplied Maximilian’s table, with the remains from which his companions were obliged to content themselves. The Emperor soon grew so much worse that his physician became alarmed and asked that one of the republican army surgeons might be called in. Dr. Riva de Nejra was sent to visit the august prisoner and advised a change of residence, declaring the present one most unfit in his condition of health.

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On the morning of the seventeenth, therefore, Maximilian was taken to the former convent, Santa Teresa, in a carriage, guarded by a troop of cavalry, his companions being forced to walk. As they passed through the city, the streets were deserted, the inhabitants considerably retiring into their

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houses, the windows of which even were closed. Not a soul was to be seen anywhere. The new quarters of the prisoners consisted of two large rooms, absolutely bare and empty. After some trouble a bed and chairs were procured for the Emperor's use, while the others were left to make themselves comfortable on the floor of the adjoining apartment. Fortunately they managed to obtain some saddle blankets to sleep on and the Emperor sent out and bought coverings, combs, brushes, and soap.

"These republicans," says Dr. Basch, "seem convinced they are treating us with the greatest care and magnanimity, their idea of humanity being apparently to permit us to breathe. Unless we can wait on ourselves we must go hungry and dirty."

In spite of these hardships, however, the change made a perceptible improvement in Maximilian's health, and his painful symptoms gradually disappeared. Juarez' delay in taking any action in regard to the fate of the prisoners encouraged the Emperor's friends to expect a favorable outcome of the affair—a hope that was rudely dispelled, however, when the Princess Salm arrived at Querétaro on the twentieth of May and revealed to her husband the danger in which Maximilian really stood. It was apparent even to the republicans that Juarez was determined to have his life. The Princess made the most heroic efforts to save him, shrinking from no dangers and no exertion in his behalf, but all in vain. The Emperor's guard was not always strictly kept, and had not treachery lurked at every turn, his escape might have been effected. Such an attempt was finally made, indeed, but it was then too late.

On the twenty-second of May Maximilian was again transferred, this time to the Capuchin monastery, with Prince Salm and Generals Mejia and Miramon. The other officers, Dr. Basch, and the Emperor's servants were left behind,

expecting to follow shortly. As hour after hour passed, however, and no one came, feeling that anything was possible in this barbarous country, they were seized with the fear that Maximilian and his companions might have been already shot without any warning. At last, however, an officer appeared, about eight o'clock in the evening, with the long-looked-for orders.

“The first person I saw in the monastery,” relates Dr. Basch, “was Salm. ‘Where is the Emperor?’ I asked.

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“‘His Majesty is in the crypt,’ he replied, but quickly added, seeing my horror at these words, ‘Calm yourself, he is alive, but really in the crypt. I will take you to him.’

“As the door was opened a rush of cold air greeted me, rank with dampness and decay. In the far corner of a huge vault, the burial-place of the monastery, was a bed, and on it lay the Emperor reading Cæsar. A small table beside him held a lighted candle. ‘They have not had time to prepare a room for me,’ he remarked, smiling quietly, ‘so I am obliged temporarily to take up my abode with the dead.’ I spent that night in the crypt alone with the Emperor, making my bed on a large slab apparently used as a bier, but after the hours of anxiety I had endured that afternoon, I had no trouble in sleeping even amid those surroundings.”

Bitter as Juarez was against Maximilian, he was not in Querétaro at this time, but at Potosi, and therefore cannot be held responsible for the atrocious treatment accorded the unfortunate Emperor, whose calm and cheerful acceptance of these indignities cannot but rouse the deepest admiration.

The next day he was taken from the crypt and lodged in a dark narrow cell, similar to those assigned his companions in misfortune, all opening on a small court so that the prisoners could be easily guarded. It soon became evident that there was no hope of any compromise in the Emperor's case. Juarez

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insisted that it should be decided by a Mexican court-martial—the outcome of which was a foregone conclusion. Maximilian's death had already been determined upon and any trial would be merely a pretext to throw dust in the eyes of the world.

Princess Salm, with the aid of a German merchant, named Stephen, and the vice-consul from Hamburg, made another attempt at rescue, which might have proved successful had not Maximilian refused to go without Miramon and Mejia, who were to be tried with him. Miramon appears to have revealed the plan to his wife, who, in turn, betrayed it to the enemy, so it resulted in only stricter measures. All the prisoners were removed from the Capuchin monastery with the exception of Maximilian and his two generals, over whom a much stronger guard was placed.

On the twelfth of June, 1867, General Escobedo issued an order arraigning Ferdinand Maximilian, Archduke of Austria, and his confederates, the “so-called” generals, Don Miguel Miramon and Don Tomas Mejia, before a court-martial to answer for crimes against the nation and against law and order. The charges against Maximilian were thirteen in number, an absurd and incongruous medley, the chief of which were that he had broken his personal guarantees; that he had served as an instrument of the French; and that he had assumed the position of a usurper and authorized atrocities of every description, such as the decree of October 3, 1865.

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The trial opened at eight o'clock on the morning of June thirteenth in the Iturbide theatre, the interior of which was brilliantly illuminated, the galleries filled with spectators, all of whom displayed the deepest interest in the proceedings. At the right sat the judges, consisting of a lieutenant-colonel and six captains, all very young and selected with little or no regard for the important questions involved. Opposite them were placed the benches for the accused and their advocates,

Generals Mejia and Miramon arriving at the theatre about nine in a carriage under a strong guard.

The president opened the session, and the attorney for the government, Manuel Aspiroz, read the charges, together with the Emperor's protest against this form of trial and the legality of all steps taken against his person under the law of January 25, 1862, which was intended for native rebels and not applicable to him as a foreigner. Lastly, medical evidence in regard to the Emperor's condition of health was produced, with a petition for more healthful accommodations.

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General Mejia was first summoned to answer before this tribunal, and his advocate, Vega, made a brilliant speech in his defence, dwelling on his bravery and loyalty as well as the distinguished services he had rendered to his native land. Miramon's attorneys, Jauregui and Moreno, employed the same line of argument.

Maximilian did not appear in person before the court. He was defended by two of the foremost lawyers in Mexico, Vazquez and Ortega, both distinguished for learning and eloquence. They directed their main arguments against the competency of such a court for the case. Maximilian was not a usurper, as charged, declared Vazquez, for he had come by invitation of a representative council, confirmed by popular vote. He had refused, in fact, to accept the crown until such vote had been assured. Whether this had been given fraudulently, he, as a foreigner on the other side of the ocean, had no means of discovering, nor had he any reason to regard himself as other than a legitimate sovereign—the ovation accorded him on his arrival naturally tending to strengthen him in this conviction. He had brought no troops but came peaceably, accompanied only by his household. Neither had he served as a tool for the French, for from the very first he had striven against their interference; the constant friction between him and the French

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commanders having finally led to the withdrawal of the French troops.

Ortega protested vigorously against the imputation of Maximilian's cruelty. The severe decree of October 3, 1865, was issued on the advice of his ministry and in the belief that Juarez had abandoned Mexican territory. Its object had been chiefly to intimidate, for no man ever sued in vain for mercy from Maximilian, whose clemency and magnanimity were well known. He concluded with an appeal to the honor and sympathy of the republicans, urging them not to abuse their victory and stain their laurels with a bloody and useless execution.

But his defenders' brilliant eloquence was powerless to save Maximilian. His sentence had been fixed long since. The whole trial was the merest farce, a spectacle prepared by Juarez and his friends. It was most fitting that a theatre should have been chosen for its performance!

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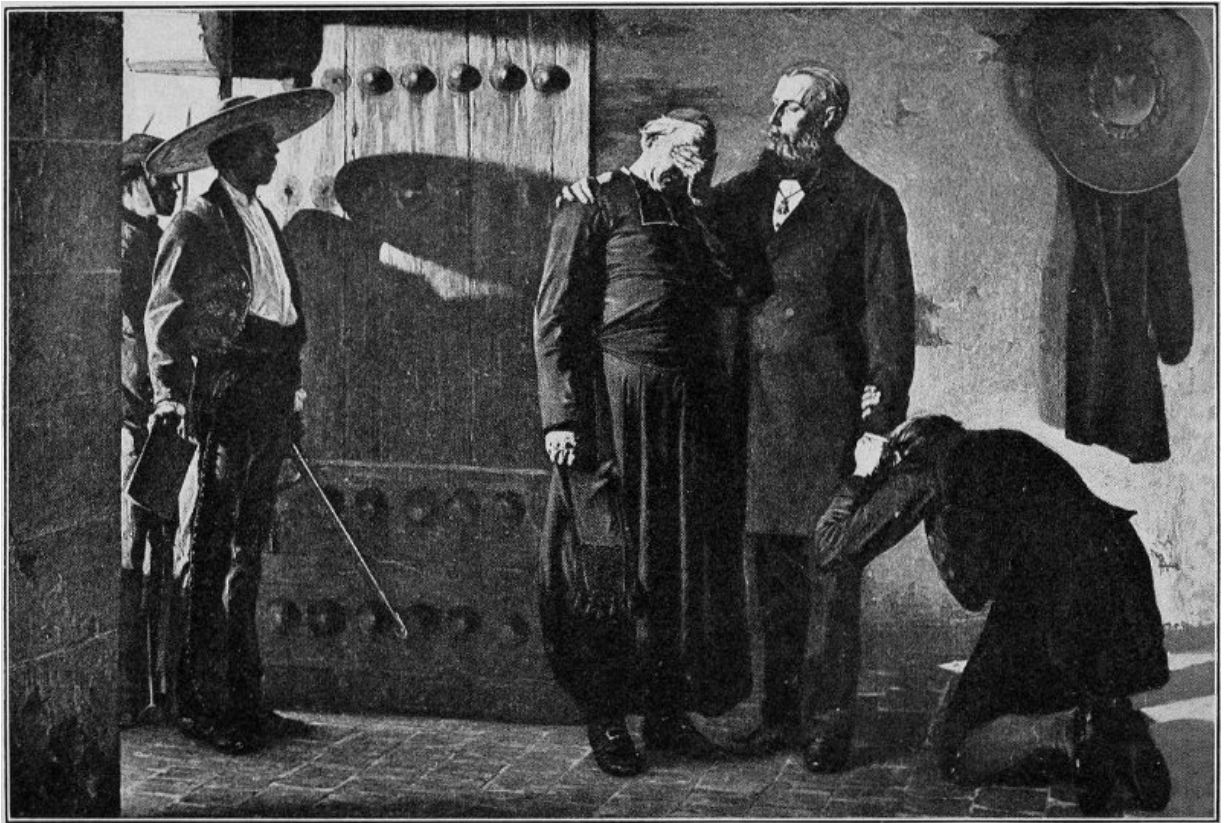
The public session of the court ended on the fourteenth of June. At eleven o'clock that night the Emperor Maximilian and his two generals were unanimously pronounced guilty and condemned to be shot, Escobedo confirming the sentence on the sixteenth and ordering the execution to take place that afternoon at three o'clock.

Mexico was now completely in the hands of the Juarists, with the exception of Vera Cruz and the capital, where Marquez was playing a singular game and needlessly sacrificing the Emperor's brave Austrians. With the downfall of the imperial cause, however, this scoundrel passes out of our history. Once, during his imprisonment, Maximilian said to his physician: "If both Marquez and Lopez were given to me to deal with as I chose, I would free the coward Lopez, but Marquez, the cold-blooded and deliberate traitor, I would hang."

Chapter XVII

Death of Maximilian and his Generals

The news that the Emperor and his two generals, Mejia and Miramon, had been sentenced to death, aroused widespread sympathy and Juarez was besieged with petitions for mercy, even Garibaldi, who certainly was no friend to the house of Hapsburg, being among the pleaders. The Prussian ambassador, Baron von Magnus, hastened to Potosi to intercede personally in behalf of Maximilian, and used every effort to secure a pardon, but in vain. All that he was able to obtain was a reprieve of two days, the execution of the sentence being postponed till seven o'clock on the morning of the nineteenth.



LAST MOMENTS OF EMPEROR MAXIMILIAN

Prince Salm being still a prisoner and powerless to act, his wife made one last desperate attempt to bring about the Emperor's escape by flight, but again the plan was frustrated by the fatal treachery that seemed to pursue Maximilian at every turn in Mexico. The Princess Salm was put into a carriage and sent out of Querétaro under a military guard, while all the diplomatic representatives were ordered by Escobedo to leave the city at two hours' notice. Meanwhile the Emperor and his companions prepared for death. They received the sacrament from Father Soria and spent their last hours communing with the confessors who were to accompany them on their last journey. Maximilian, calm and serene as in happier days, conversed cheerfully with Dr. Basch and his lawyers, Ortega and Vazquez, who had come to bid him farewell. On parting with the physician he charged

him to carry back to his friends and family in Vienna a report of the siege and of his last days.

“Tell my mother,” he said, “that I have done my duty as a soldier and die a good Christian.”

At three o’clock, the time originally set for the execution, all was ready for the last march to the Cerro de la Campana. The officer in command of the firing squad begged for forgiveness with tears in his eyes, but the Emperor calmed him, saying: “You are a soldier and must obey your orders.” For a whole hour they waited for the summons, but none came. At last, about four o’clock, an officer arrived with the announcement that the execution had been postponed till the nineteenth, the order having only just arrived by wire from Potosi an hour before.

“This is hard,” exclaimed Maximilian, “for I had already finished with the world.”

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He availed himself of the delay, however, to dictate several farewell letters to his physician, among them one of thanks to his captive officers for their loyalty and a touching appeal to his implacable enemy, Juarez, to prevent further bloodshed and let his death serve to promote the peace and welfare of his adopted country. Even now Baron von Magnus made one more effort to save the Emperor’s life. On the eighteenth of June he sent a telegram to the Juarist minister, Lerdo de Tejada, offering to secure guarantees from all the leading sovereigns of Europe that none of the three prisoners should ever again set foot on Mexican soil or disturb the country in any way. But Juarez was inexorable. In reply to the Baron’s despatch Minister Tejada stated that the President of the Republic was convinced that the cause of justice and the future peace of the country required the death of the prisoners.

At last the fatal morning of Wednesday, June 19, 1867, dawned. At five o’clock Father Soria came to celebrate mass,

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and at half past six the republican officer who had charge of the execution arrived. The three prisoners, dressed in black, entered carriages, each with his confessor, and were driven slowly to the place of execution, which was surrounded by a guard of four thousand men. On alighting, the Emperor embraced his two companions, promising they should soon meet in another world, and then walked with dignity to the spot assigned at the foot of a hill in front of a shattered wall. Here he placed Miramon in the centre, saying, "A brave soldier is respected by his sovereign; permit me to yield you the place of honor." Turning to Mejia, who had been unnerved by the sight of his wife running through the streets frantic with grief, he said: "General, what has not been rewarded on earth will certainly be in heaven." After distributing some gold pieces among the soldiers who were to do the firing, he said in a firm voice: "May my blood be the last shed in sacrifice for this country, and if more is required, let it be for the good of the nation, never by treason."

The signal to fire was then given and the three fell simultaneously, Maximilian's body pierced by six bullets. The Mexican Empire had ceased to exist, and the noble Hapsburger had laid down his life for the welfare of an ungrateful people.

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General Escobedo had promised the Emperor before his death that his body should be delivered to Baron von Magnus to be taken back to Europe, yet in spite of this the ambassador had much trouble in obtaining possession of it. He was ill himself for a time with fever and had to be taken to Potosi. After many delays, however, the remains were finally given into his custody on November twelfth and, attended by Vice-admiral von Tegetthof, his two adjutants, and Doctor Basch, were taken to Vera Cruz with a cavalry escort of one hundred men, and placed on board the *Novara*, the same vessel which but three years before had conveyed Maximilian to his adopted country and to his doom. On the fifteenth of January, 1868,

the *Novara* arrived at Trieste. A special train conveyed the coffin to Vienna, where, three days later, the body of Archduke Ferdinand Maximilian of Austria was buried in the imperial vault in the Capuchin church.

Chapter XVIII

Conclusion

As there may be some curiosity as to the later history of those who so shamefully betrayed the Emperor Maximilian, a word as to their fate may not be amiss.

His murderer, Juarez, proved himself unable to restore peace and tranquillity in the country. He attained his ambition, however, when he was again made President, and this sufficed for him. He did not long survive the victim of his cruelty and revenge, dying, in Mexico, July 18, 1872. His friend, Escobedo, received from General Mejia his only son as a legacy—one that was to prove a constant reminder of his treachery. Twice the Juarist chief had owed his life to Mejia's generosity, yet he had not hesitated in turn to sign the latter's death-warrant.

Napoleon Third's subsequent career has passed into history. Losing battle after battle, and finally his throne, in the war of 1870, he surrendered his sword to King William First of Prussia on the second of September of that year and was taken to Wilhelmshöhe at Cassel as a prisoner of war, where he received very different treatment from that accorded the captive Emperor in Querétaro. After the conclusion of peace he retired to England, where he died at Chiselhurst.

A yet more tragic fate befell Marshal François Achille Bazaine. During the Franco-Prussian War he was besieged in Metz by Prince Friedrich Karl and forced to surrender with about one hundred and seventy thousand men. He was taken

to Cassel, where he shared Napoleon's imprisonment. Accused by the French not only of cowardice and incapacity but also of treason, he was tried by court-martial and condemned to death. There being no bloodthirsty Juarez in France, however, the sentence was commuted to twenty years' imprisonment on the Island of Sainte Marguerite, near Cannes. He succeeded in escaping, with the help of his wife, and fled to Madrid, where he lived in poverty and obscurity and died in 1888, forgotten by the world and deserted by his wife, who returned to her native Mexico.

Marquez escaped from the city of Mexico, hiding the first night, it is said, in a coffin, and, continuing his flight at daylight toward the north, succeeded in reaching Texas. His subsequent history is unknown. After betraying the imperial army, Lopez prepared to enjoy the reward of his treason, but it was flatly refused him. Despised alike by friend and foe, and even by his own wife, he led a wretched existence, employing himself in vain attempts to vindicate his treachery.

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* * * * *

Doubtless Maximilian made many grave mistakes, but from the foregoing pages it is plain that both he and his wife went to Mexico with the noblest aims and full of enthusiasm for the mission, to the difficulties of which they finally succumbed. Yet the sacrifice was not wholly in vain, for the last struggle has served to embalm the memory of the Emperor Maximilian First of Mexico as a brave and chivalrous prince, while that of his enemies is held in merited contempt.

On the spot where Maximilian and his two generals so gallantly met their fate on the nineteenth of June, 1867, a memorial chapel has been erected, to which throngs of Mexicans of all classes annually make a pilgrimage on the anniversary of that day, as indeed they did previously, when only a simple gravestone marked the place of death.

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Appendix

The following is a chronological statement of important events connected with Maximilian:

- 1832 Birth of Maximilian.
- 1850-57 Marine service.
- 1857 Marriage to Carlotta.
- 1859 Retires to Miramar.
- 1863 Mexican Embassy visits Miramar.
- 1864 Coronation ceremony.
- 1864 Arrival in Mexico.
- 1865 Revolutionary uprisings.
- 1866 The Empress goes to Europe.
- 1867 Departure of the French.
- 1867 Downfall of the Mexican Empire.
- 1867 Execution of Maximilian.

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